

COMPLETE LEARNING SESSION

President and Vice-President - Complete Learning Package

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Polity 15 - President and Vice-President - Complete Learning Package

Foundation and Core are independently answer-complete. Optional Advanced adds comparison and deeper evaluation. Current office-holder claims were checked against official sources on 5 September 2026.

Evidence and answer-writing control

- Constitutional text and election law control Articles 52-73, 111, 123, 201 and 361.
- Every session follows: visual -> definition -> exact provision -> mechanism -> named evidence -> limit -> exam paragraph.
- Current office-holders are dated illustrations, not timeless constitutional rules.
- Objective PYQ letters are withheld unless a final official or locally held official UPSC key is verified.

BASIC LEARNING SESSION

The navigation image introduces the teaching sequence; the separate graphical and ASCII companions provide synchronized revision views.

Package method, scope boundary and current control

- Source order followed: certified Core owner Polity/basic/President-and-Vice-President.md -> optional Advanced owner Polity/advanced/15_President-and-Vice-President.md -> comparative Core for France/USA -> official local PYQ scans and 2025 official Set-A key -> live official constitutional-office controls -> Qdrant not used.
- [LIMIT] Foundation and Core are independently answer-complete. Optional Advanced adds theory, comparisons and deeper institutional criticism only.
- [CURRENT] Status is controlled to **5 September 2026, Asia/Kolkata**.
- [CURRENT] **Droupadi Murmu** is the 15th President of India, in office since 25 July 2022.
- [CURRENT] **C. P. Radhakrishnan** is the 15th Vice-President of India, in office since 12 September 2025.
- [CURRENT] His 2025 election followed a casual vacancy. Article 68 requires that election **as soon as possible** and gives the successor a fresh five-year term; it does **not** prescribe the President's six-month casual-vacancy deadline.
- [CURRENT] The Supreme Court's 20 November 2025 Article 143 opinion rejected judicially invented rigid assent timelines and deemed assent under Articles 200/201, while allowing limited intervention against glaring, prolonged and unexplained inaction.
- Package target: **21 visual-first sessions, 8 routed PYQs, 32 original MCQs with 128 option explanations and 32 traps, and 6 solved Mains questions.**

Roadmap

Stage	Coverage	Exam outcome
Architecture	Nominal President, presiding Vice-President	Understands office design
President election	College, vote value, STV, disputes	Solves repeated Prelims route
Conditions	Qualifications, oath, term, vacancy, immunity	Controls close options
Removal	Article 61 impeachment	Distinguishes election and removal bodies
Position	Articles 53, 74, 75 and situational discretion	Answers "rubber stamp" demands
Powers	Executive, legislative, financial, judicial and external	Builds complete Mains body
Veto/ordinance	Articles 111, 123 and 201	Handles executive-legislation traps

Stage	Coverage	Exam outcome
Clemency	Article 72, Article 161 contrast and review	Solves 2025 Prelims/Mains
Vice-President	Election, removal, vacancy and acting role	Prevents President-VP mixing
Rajya Sabha Chair	Rules, casting vote, defection and neutrality	Answers 2022 GS-II
Comparison	India-France election and India-USA pardon	Answers 2022/2025 GS-II
Practice	Eight PYQs, 32 MCQs and six Mains models	Converts knowledge into marks

PART I - Complete Foundation and Core learning session

SESSION 1 - TWO OFFICES, TWO CONSTITUTIONAL PURPOSES

VISUAL FIRST

CONSTITUTIONAL RULE

↓
v

Articles 52-65: President as Head of State; Vice-President as Rajya Sabha Chairman and temporary acting President.

↓
v

INSTITUTIONAL EFFECT

↓
v

President = constitutional continuity; Vice-President = parliamentary chair plus temporary bridge.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Two Offices, Two Constitutional Purposes: the President is the constitutional Head of State, while the Vice-President ordinarily serves as Rajya Sabha Chairman.

Technical definition: Two Offices, Two Constitutional Purposes: articles 52-62 and 63-71 create distinct offices linked by temporary acting arrangements, not automatic succession.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Two offices, two constitutional purposes: national continuity for the President and federal-chamber procedure for the Vice-President.

MUST-WRITE KEYWORDS

- Two
- Offices
- Constitutional
- Purposes
- President
- constitutional procedure

How to use them: Frame the answer through Two; define Offices, connect Constitutional with Purposes to explain the mechanism, and use President for the decisive comparison or qualification.

Dimension	President	Vice-President
Articles	52-62; powers across Constitution, including 72	63-71; Chairmanship also under 64, 89, 92 and 100
Core position	Head of State; Union executive power formally vested in office	Ex-officio Chairman of Rajya Sabha
Election base	Elected MPs plus specified elected MLAs	Members of both Houses of Parliament
Normal executive authority	Acts on ministerial advice	No ordinary Union executive power

Dimension	President	Vice-President
Removal	Impeachment for violation of Constitution	Rajya Sabha-initiated removal; no ground stated
Standby role	Office must always exist	Acts as President during vacancy/temporary inability

- [FACT] Article 52 says there shall be a President of India; Article 63 similarly creates a Vice-President.
- [ANALYSIS] The offices are not a succession hierarchy in the US sense. The Vice-President temporarily acts; he or she does not inherit the remainder of a presidential term.
- [LIMIT] The Constitution does not use "nominal executive" as a label; that conclusion follows from Articles 53, 74 and 75 and parliamentary practice.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** The Constitution creates two distinct offices rather than a line of automatic succession.
- **Named evidence:** Articles 52-65: President as Head of State; Vice-President as Rajya Sabha Chairman and temporary acting President.
- **Analysis:** Separating normal functions prevents the Vice-President's contingency role from becoming ordinary executive authority.
- **Qualification:** The Vice-President acts only during vacancy or inability and never inherits the unexpired presidential term.
- **Prelims trap:** Do not describe the Vice-President as the President's constitutional successor in the United States sense.
- **Mains use:** Use the office-design distinction as the introduction to any President-versus-Vice-President answer.
- **Mini recap:** President = constitutional continuity; Vice-President = parliamentary chair plus temporary bridge.

Paragraph model: The Constitution creates two distinct offices rather than a line of automatic succession. Articles 52-65: President as Head of State; Vice-President as Rajya Sabha Chairman and temporary acting President. Separating normal functions prevents the Vice-President's contingency role from becoming ordinary executive authority. The Vice-President acts only during vacancy or inability and never inherits the unexpired presidential term.

CLOSING RECALL FLOW - TWO OFFICES, TWO CONSTITUTIONAL PURPOSES

START / CONCEPT: Two offices, two constitutional purposes

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v

EXACT TERMS: Two • Offices • Constitutional • Purposes • President • constitutional procedure

|
v

MECHANISM / ARGUMENT: Identify the controlling Article, trace the institutional procedure, then state its limit and accountability consequence.

|
v

CONSEQUENCE / CONTRAST: The rule preserves constitutional continuity while keeping executive power accountable within parliamentary government.

|
v

UPSC TRAP / ANSWER-USE: Do not transfer the electoral college, removal threshold, vacancy deadline or substantive power of one office to the other.

|
v

ANSWER-GRABBING FORMULATION: Two offices, two constitutional purposes: national continuity for the President and federal-chamber procedure for the Vice-President.

SESSION 2 - ELECTION OF THE PRESIDENT: WHO VOTES

VISUAL FIRST

CONSTITUTIONAL RULE

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v

Article 54 includes elected MPs and elected MLAs of States, Delhi and Puducherry; it excludes nominees and MLCs.

|

v

INSTITUTIONAL EFFECT

|

v

President's college = elected Parliament plus specified elected Assemblies.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Election Of The President: Who Votes: the President is elected by elected MPs and specified elected MLAs, not nominated members or Legislative Councillors.

Technical definition: Election Of The President: Who Votes: article 54 includes elected members of Parliament and State, Delhi and Puducherry Assemblies.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Election of the President begins by identifying exactly who votes and who is excluded.

MUST-WRITE KEYWORDS

- Election
- President
- Who
- Votes
- constitutional procedure
- institutional limit

How to use them: Frame the answer through Election; define President, connect Who with Votes to explain the mechanism, and use constitutional procedure for the decisive comparison or qualification.

Included

- [FACT] Elected members of Lok Sabha and Rajya Sabha.
- [FACT] Elected members of the Legislative Assemblies of the States.
- [FACT] Elected members of the Legislative Assemblies of the National Capital Territory of Delhi and Puducherry, added through the 70th Amendment framework.

Excluded

- [FACT] Nominated members of either House of Parliament.
- [FACT] Nominated members of State/eligible UT Assemblies.
- [FACT] Every member of a State Legislative Council.
- [FACT] Jammu and Kashmir's UT legislature is not added to the Article 54 explanation, which names only Delhi and Puducherry.

Why indirect

- [ANALYSIS] Indirect election fits a parliamentary system in which the President normally lacks an independent executive programme.
- [ANALYSIS] Weighted State votes provide a federal element while equal MP vote value binds the Union side into one national college.
- [LIMIT] The President is democratically elected but does not possess a direct popular mandate against the Council of Ministers.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** The presidential electoral college combines democratic election with federal representation.
- **Named evidence:** Article 54 includes elected MPs and elected MLAs of States, Delhi and Puducherry; it excludes nominees and MLCs.
- **Analysis:** The elected-only rule gives indirect democratic legitimacy, while the MLA component prevents Parliament alone from choosing the federal Head of State.
- **Qualification:** Jammu and Kashmir Union Territory MLAs are not included unless constitutional text is amended.
- **Prelims trap:** Nominated MPs vote for Vice-President, not President; MLCs vote for neither.
- **Mains use:** Write the inclusion list first, then exclusions, then the federal rationale.
- **Mini recap:** President's college = elected Parliament plus specified elected Assemblies.

Paragraph model: The presidential electoral college combines democratic election with federal representation. Article 54 includes elected MPs and elected MLAs of States, Delhi and Puducherry; it excludes nominees and MLCs. The elected-only rule gives indirect democratic legitimacy, while the MLA component prevents Parliament alone from choosing the federal Head of State. Jammu and Kashmir Union Territory MLAs are not included unless constitutional text is amended.

CLOSING RECALL FLOW - ELECTION OF THE PRESIDENT: WHO VOTES

START / CONCEPT: Election of the President: who votes

|

v

EXACT TERMS: Election · President · Who · Votes · constitutional procedure · institutional limit

|

v

MECHANISM / ARGUMENT: Identify the controlling Article, trace the institutional procedure, then state its limit and accountability consequence.

|

v

CONSEQUENCE / CONTRAST: The rule preserves constitutional continuity while keeping executive power accountable within parliamentary government.

|

v

UPSC TRAP / ANSWER-USE: Do not transfer the electoral college, removal threshold, vacancy deadline or substantive power of one office to the other.

|

v

ANSWER-GRABBING FORMULATION: Election of the President begins by identifying exactly who votes and who is excluded.

SESSION 3 - VOTE VALUE, PARITY AND PR-STV

VISUAL FIRST

CONSTITUTIONAL RULE

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v

Frozen 1971 population, elected-MLA denominator, aggregate MLA-MP parity and PR-STV.

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v

INSTITUTIONAL EFFECT

|

v

Weight first, rank second: federal parity plus transferable majority.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Vote Value, Parity And PR-STV: presidential vote values weight State representation before transferable preferences identify a majority-supported winner.

Technical definition: Vote Value, Parity And PR-STV: article 55 uses 1971-census MLA values, aggregate MP parity and PR-STV by secret ballot.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Vote value, parity and PR-STV combine federal weighting with ranked-majority choice.

MUST-WRITE KEYWORDS

- **Vote**
- **Value**
- **Parity**
- **Pr-Stv**
- **President**
- **constitutional procedure**

How to use them: Frame the answer through Vote; define Value, connect Parity with Pr-Stv to explain the mechanism, and use President for the decisive comparison or qualification.

MLA vote value

State population / (elected MLAs x 1000)

- [FACT] If the remaining fraction is at least 500, one is added to the quotient.
- [FACT] "Population" continues to use the 1971 census until relevant figures of the first census taken after 2026 have been published.
- [ANALYSIS] More Assembly seats do not by themselves raise each MLA's value; the decisive quantity is the population-to-elected-MLA ratio.

MP vote value

Total value of votes of all elected MLAs / total elected MPs of both Houses

- [FACT] Every elected MP, whether from Lok Sabha or Rajya Sabha, has the same vote value.
- [FACT] Fractions exceeding one-half are counted as one; other fractions are disregarded.

Ballot and count

- [FACT] Election uses proportional representation by single transferable vote and secret ballot.
- [FACT] Electors rank candidates. The winning quota is more than half the total valid vote value.
- [FACT] If nobody reaches the quota on first preferences, the lowest candidate is excluded and transferable values move according to next preferences.
- [LIMIT] "Proportional representation" here elects one office; its practical effect is majority preference through transferable rankings, not a multi-seat proportional legislature.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Article 55 balances States and Parliament before preferences identify a majority-supported President.

- **Named evidence:** Frozen 1971 population, elected-MLA denominator, aggregate MLA-MP parity and PR-STV.
- **Analysis:** Weighting reflects federal population differences without allowing current demographic change immediately to reshape the bargain; transfers avoid a mere plurality winner.
- **Qualification:** The 1971 basis continues until relevant figures of the first census after 2026 are published.
- **Prelims trap:** More Assembly seats do not automatically mean a higher vote value per MLA.
- **Mains use:** Show both formulas and explain what each formula is designed to balance.
- **Mini recap:** Weight first, rank second: federal parity plus transferable majority.

Paragraph model: Article 55 balances States and Parliament before preferences identify a majority-supported President. Frozen 1971 population, elected-MLA denominator, aggregate MLA-MP parity and PR-STV. Weighting reflects federal population differences without allowing current demographic change immediately to reshape the bargain; transfers avoid a mere plurality winner. The 1971 basis continues until relevant figures of the first census after 2026 are published.

CLOSING RECALL FLOW - VOTE VALUE, PARITY AND PR-STV

START / CONCEPT: Vote value, parity and PR-STV

|

v

EXACT TERMS: Vote · Value · Parity · Pr-Stv · President · constitutional procedure

|

v

MECHANISM / ARGUMENT: Identify the controlling Article, trace the institutional procedure, then state its limit and accountability consequence.

|

v

CONSEQUENCE / CONTRAST: The rule preserves constitutional continuity while keeping executive power accountable within parliamentary government.

|

v

UPSC TRAP / ANSWER-USE: Do not transfer the electoral college, removal threshold, vacancy deadline or substantive power of one office to the other.

|

v

ANSWER-GRABBING FORMULATION: Vote value, parity and PR-STV combine federal weighting with ranked-majority choice.

SESSION 4 - PRESIDENTIAL ELECTION ADMINISTRATION AND DISPUTES

VISUAL FIRST

CONSTITUTIONAL RULE

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v

1952 Act, 1974 Rules, 1997 candidature reform and Article 71 Supreme Court jurisdiction.

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v

INSTITUTIONAL EFFECT

|

v

Election legality is reviewable; office continuity remains protected.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Presidential Election Administration And Disputes: presidential election administration follows the 1952 Act, 1974 Rules and Article 71 Supreme Court control.

Technical definition: Presidential Election Administration And Disputes: the 1997 reform requires 50 proposers, 50 seconders and a Rs 15,000 deposit for presidential candidature.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Presidential election administration and disputes require both constitutional design and statutory machinery.

MUST-WRITE KEYWORDS

- **Presidential**
- **Election**
- **Administration**
- **Disputes**
- **President**
- **constitutional procedure**

How to use them: Frame the answer through Presidential; define Election, connect Administration with Disputes to explain the mechanism, and use President for the decisive comparison or qualification.

- [FACT] A candidate needs **50 proposers and 50 seconders** and a statutory deposit of **Rs 15,000**.

- [FACT] The **Presidential and Vice-Presidential Elections Act, 1952** governs notification, nominations, scrutiny, withdrawal, poll and election petitions; the **1974 Rules** supply forms, ballot and counting machinery.

- [FACT] The **1997 Amendment** raised the serious-candidature thresholds to ****50 proposers and 50 seconders for President, 20 and 20 for Vice-President, and a Rs 15,000 deposit**** for either office.

- [FACT] The Supreme Court finally decides doubts and disputes connected with election of the President or Vice-President under Article 71.

- [FACT] Acts already done in office are not invalidated merely because the election is later declared void.

- [FACT] An election cannot be challenged merely because the electoral college contained a vacancy for any reason.

- [FACT] Dissolution of some State Assemblies does not constitutionally justify postponing the presidential election.

- [ANALYSIS] These rules protect continuity of the Head of State while preserving judicial control over the election itself.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Presidential election disputes are judicially controlled without paralysing constitutional continuity.

- **Named evidence:** 1952 Act, 1974 Rules, 1997 candidature reform and Article 71 Supreme Court jurisdiction.

- **Analysis:** Statutory machinery screens candidature and conducts the poll; final Supreme Court control protects legality.

- **Qualification:** A later declaration of invalidity does not erase acts already done, and vacancies in the college do not invalidate the election.

- **Prelims trap:** A dissolved Assembly is not a constitutional reason to postpone the presidential election.

- **Mains use:** Use Constitution -> statute -> rules -> Article 71 as the paragraph sequence.

- **Mini recap:** Election legality is reviewable; office continuity remains protected.

Paragraph model: Presidential election disputes are judicially controlled without paralysing constitutional continuity. 1952 Act, 1974 Rules, 1997 candidature reform and Article 71 Supreme Court jurisdiction. Statutory machinery screens candidature and conducts the poll; final Supreme Court control protects legality. A later declaration of invalidity does not erase acts already done, and vacancies in the college do not invalidate the election.

CLOSING RECALL FLOW - PRESIDENTIAL ELECTION ADMINISTRATION AND DISPUTES

START / CONCEPT: Presidential election administration and disputes

|

v

EXACT TERMS: Presidential · Election · Administration · Disputes · President · constitutional procedure

|

v

MECHANISM / ARGUMENT: Identify the controlling Article, trace the institutional procedure, then state its limit and accountability consequence.

|

v

CONSEQUENCE / CONTRAST: The rule preserves constitutional continuity while keeping executive power accountable within parliamentary government.

|

v

UPSC TRAP / ANSWER-USE: Do not transfer the electoral college, removal threshold, vacancy deadline or substantive power of one office to the other.

|

v

ANSWER-GRABBING FORMULATION: Presidential election administration and disputes require both constitutional design and statutory machinery.

SESSION 5 - QUALIFICATIONS, OATH AND CONDITIONS OF OFFICE

VISUAL FIRST

CONSTITUTIONAL RULE

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v

Articles 58-60: citizen, 35, Lok Sabha qualification, no disqualifying office of profit, Article 60 oath.

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v

INSTITUTIONAL EFFECT

|

v

Eligibility selects; oath constitutionalises the exercise of office.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Qualifications, Oath And Conditions Of Office: a presidential candidate must be an Indian citizen aged 35, qualified for Lok Sabha and free of a disqualifying office of profit.

Technical definition: Qualifications, Oath And Conditions Of Office: articles 58-60 govern qualification, office conditions and the oath administered by the Chief Justice of India or substitute.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Qualifications, oath and conditions of office protect the dignity and independence of the presidency.

MUST-WRITE KEYWORDS

- Qualifications
- Oath
- Conditions
- Office
- President
- constitutional procedure

How to use them: Frame the answer through Qualifications; define Oath, connect Conditions with Office to explain the mechanism, and use President for the decisive comparison or qualification.

Test	President
Citizenship	Citizen of India
Minimum age	35 years

Test	President
Electoral qualification	Qualified for election as a Lok Sabha member
Office of profit	Must not hold one under Union, State or controlled local/other authority
Oath	CJI, or in absence the senior-most available Supreme Court judge
Legislative membership	If an MP/MLA is elected, the seat is deemed vacated on entering office

- [FACT] For qualification, holding office as President, Vice-President, Governor or Union/State minister is not treated as holding an office of profit.
- [FACT] The President is entitled to the official residence and statutory emoluments; these cannot be diminished during the term.
- [FACT] The oath promises faithful execution, preservation/protection/defence of the Constitution and law, and service to the people.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Eligibility and oath rules protect competence, independence and constitutional fidelity.
- **Named evidence:** Articles 58-60: citizen, 35, Lok Sabha qualification, no disqualifying office of profit, Article 60 oath.
- **Analysis:** Eligibility links the office to representative standards; office-of-profit and oath rules reduce conflicting allegiance.
- **Qualification:** Specified constitutional offices are not treated as disqualifying offices of profit for candidature.
- **Prelims trap:** President requires Lok Sabha qualification; Vice-President requires Rajya Sabha qualification.
- **Mains use:** Pair each qualification with its institutional purpose rather than listing mechanically.
- **Mini recap:** Eligibility selects; oath constitutionalises the exercise of office.

Paragraph model: Eligibility and oath rules protect competence, independence and constitutional fidelity. Articles 58-60: citizen, 35, Lok Sabha qualification, no disqualifying office of profit, Article 60 oath. Eligibility links the office to representative standards; office-of-profit and oath rules reduce conflicting allegiance. Specified constitutional offices are not treated as disqualifying offices of profit for candidature.

CLOSING RECALL FLOW - QUALIFICATIONS, OATH AND CONDITIONS OF OFFICE

START / CONCEPT: Qualifications, oath and conditions of office

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v

EXACT TERMS: Qualifications • Oath • Conditions • Office • President • constitutional procedure

|
v

MECHANISM / ARGUMENT: Identify the controlling Article, trace the institutional procedure, then state its limit and accountability consequence.

|
v

CONSEQUENCE / CONTRAST: The rule preserves constitutional continuity while keeping executive power accountable within parliamentary government.

|
v

UPSC TRAP / ANSWER-USE: Do not transfer the electoral college, removal threshold, vacancy deadline or substantive power of one office to the other.

|
v

ANSWER-GRABBING FORMULATION: Qualifications, oath and conditions of office protect the dignity and independence of the presidency.

SESSION 6 - TERM, RE-ELECTION, VACANCY AND SUCCESSION

VISUAL FIRST

CONSTITUTIONAL RULE

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v

Five-year term, continuation until successor, resignation to Vice-President, six-month casual-vacancy election and 1969 succession statute.

|

v

INSTITUTIONAL EFFECT

|

v

No vacuum: holdover, acting arrangement, election, fresh term.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Term, Re-Election, Vacancy And Succession: the President serves five years, may be re-elected and continues until a successor enters office.

Technical definition: Term, Re-Election, Vacancy And Succession: articles 56 and 62 require a presidential casual vacancy to be filled within six months for a fresh five-year term.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Term, re-election, vacancy and succession rules prevent an interregnum in the Head of State.

MUST-WRITE KEYWORDS

- Term
- Re-Election
- Vacancy
- Succession
- President
- constitutional procedure

How to use them: Frame the answer through Term; define Re-Election, connect Vacancy with Succession to explain the mechanism, and use President for the decisive comparison or qualification.

- [FACT] The term is five years from entering office.
- [FACT] The President may resign to the Vice-President.
- [FACT] The President remains in office after the five years until the successor enters office; there is no ordinary interregnum.
- [FACT] Re-election is constitutionally unlimited. Dr Rajendra Prasad alone completed two presidential terms.
- [FACT] Election to fill an expected expiry must be completed before expiry.
- [FACT] A casual vacancy caused by death, resignation, removal or otherwise must be filled within six months; the elected successor receives a fresh five-year term.
- [FACT] The Vice-President acts as President during a vacancy. If both offices are unavailable, Parliament's law places the Chief Justice of India, or the senior-most available Supreme Court judge, in the acting role.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Articles 56 and 62 prevent an interregnum while preserving a fresh democratic mandate after vacancy.
- **Named evidence:** Five-year term, continuation until successor, resignation to Vice-President, six-month casual-vacancy election and 1969 succession statute.
- **Analysis:** Holdover and temporary discharge keep the office continuously functional; the fresh five-year term avoids a truncated successor presidency.
- **Qualification:** The six-month deadline is for presidential, not Vice-Presidential, casual vacancy.
- **Prelims trap:** The Vice-President acts temporarily; the Chief Justice or senior-most available Supreme Court judge may discharge functions if both offices are unavailable.

- **Mains use:** Draw the vacancy chain and distinguish expiry from casual vacancy.
- **Mini recap:** No vacuum: holdover, acting arrangement, election, fresh term.

Paragraph model: Articles 56 and 62 prevent an interregnum while preserving a fresh democratic mandate after vacancy. Five-year term, continuation until successor, resignation to Vice-President, six-month casual-vacancy election and 1969 succession statute. Holdover and temporary discharge keep the office continuously functional; the fresh five-year term avoids a truncated successor presidency. The six-month deadline is for presidential, not Vice-Presidential, casual vacancy.

CLOSING RECALL FLOW - TERM, RE-ELECTION, VACANCY AND SUCCESSION

START / CONCEPT: Term, re-election, vacancy and succession

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v

EXACT TERMS: Term • Re-Election • Vacancy • Succession • President • constitutional procedure

|
v

MECHANISM / ARGUMENT: Identify the controlling Article, trace the institutional procedure, then state its limit and accountability consequence.

|
v

CONSEQUENCE / CONTRAST: The rule preserves constitutional continuity while keeping executive power accountable within parliamentary government.

|
v

UPSC TRAP / ANSWER-USE: Do not transfer the electoral college, removal threshold, vacancy deadline or substantive power of one office to the other.

|
v

ANSWER-GRABBING FORMULATION: Term, re-election, vacancy and succession rules prevent an interregnum in the Head of State.

SESSION 7 - IMPEACHMENT UNDER ARTICLE 61

VISUAL FIRST

CONSTITUTIONAL RULE

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One-fourth notice signatures, fourteen days, two-thirds of total membership in both Houses and a right of defence.

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v

INSTITUTIONAL EFFECT

|
v

Election is federal; impeachment is parliamentary and exceptionally stringent.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Impeachment Under Article 61: article 61 removes the President only for violation of the Constitution through a stringent two-House process.

Technical definition: Impeachment Under Article 61: either House may initiate after one-fourth signatures and fourteen days notice; each decisive resolution needs two-thirds of total membership.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Impeachment under Article 61 deliberately separates election legitimacy from exceptional constitutional removal.

MUST-WRITE KEYWORDS

- Impeachment
- Article
- President
- constitutional procedure
- institutional limit

- **exam distinction**

How to use them: Frame the answer through Impeachment; define Article, connect President with constitutional procedure to explain the mechanism, and use institutional limit for the decisive comparison or qualification.

- [FACT] The sole ground is **violation of the Constitution**, which the Constitution does not define.
- [FACT] Either House may initiate.
- [FACT] At least one-fourth of the total membership of the initiating House must sign the notice; at least 14 days' notice is required.
- [FACT] The initiating House must pass the charge by at least two-thirds of its total membership.
- [FACT] The other House investigates or causes investigation. The President has the right to appear and be represented.
- [FACT] If the investigating House also sustains the charge by two-thirds of its total membership, removal takes effect on passage.
- [FACT] Nominated MPs may participate in impeachment although they do not elect the President; State MLAs elect but do not impeach.
- [CURRENT] No Indian President has been impeached.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Article 61 deliberately makes presidential removal exceptional and bipartisan.
- **Named evidence:** One-fourth notice signatures, fourteen days, two-thirds of total membership in both Houses and a right of defence.
- **Analysis:** The high threshold protects the Head of State from ordinary partisan removal while retaining accountability for constitutional violation.
- **Qualification:** The Constitution does not define 'violation of the Constitution'; no Indian President has been impeached.
- **Prelims trap:** Nominated MPs may impeach though they cannot elect; MLAs elect though they cannot impeach.
- **Mains use:** Write initiation, investigation, defence and final threshold in order.
- **Mini recap:** Election is federal; impeachment is parliamentary and exceptionally stringent.

Paragraph model: Article 61 deliberately makes presidential removal exceptional and bipartisan. One-fourth notice signatures, fourteen days, two-thirds of total membership in both Houses and a right of defence. The high threshold protects the Head of State from ordinary partisan removal while retaining accountability for constitutional violation. The Constitution does not define 'violation of the Constitution'; no Indian President has been impeached.

CLOSING RECALL FLOW - IMPEACHMENT UNDER ARTICLE 61

START / CONCEPT: Impeachment under Article 61

|
v

EXACT TERMS: Impeachment • Article • President • constitutional procedure • institutional limit • exam distinction

|
v

MECHANISM / ARGUMENT: Identify the controlling Article, trace the institutional procedure, then state its limit and accountability consequence.

|
v

CONSEQUENCE / CONTRAST: The rule preserves constitutional continuity while keeping executive power accountable within parliamentary government.

|
v

UPSC TRAP / ANSWER-USE: Do not transfer the electoral college, removal threshold, vacancy deadline or substantive power of one office to the other.

|
v

ANSWER-GRABBING FORMULATION: Impeachment under Article 61 deliberately separates election legitimacy from exceptional constitutional removal.

SESSION 8 - PRESIDENTIAL IMMUNITIES UNDER ARTICLE 361

VISUAL FIRST

CONSTITUTIONAL RULE



No criminal proceedings or arrest during tenure; two-month notice for specified personal civil proceedings; official acts remain attributable to government.



INSTITUTIONAL EFFECT



Continuity is protected; legality is not extinguished.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Presidential Immunities Under Article 361: article 361 gives the serving President procedural protection without immunising government action from review.

Technical definition: Presidential Immunities Under Article 361: it bars criminal proceedings and arrest during tenure and requires two months notice for specified personal civil proceedings.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Presidential immunities under Article 361 protect office continuity, not substantive impunity.

MUST-WRITE KEYWORDS

- **Presidential**
- **Immunities**
- **Article**
- **President**
- **constitutional procedure**
- **institutional limit**

How to use them: Frame the answer through Presidential; define Immunities, connect Article with President to explain the mechanism, and use constitutional procedure for the decisive comparison or qualification.

- [FACT] The President is not answerable to any court for official acts, subject to parliamentary investigation of an impeachment charge and the ability to sue the Union where law permits.
- [FACT] No criminal proceeding may be instituted or continued during the term.
- [FACT] No arrest or imprisonment process may issue during the term.
- [FACT] Civil proceedings concerning personal acts may begin during the term only after two months' written notice containing the prescribed particulars.
- [LIMIT] Immunity of the person does not place government action beyond judicial review.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Article 361 protects uninterrupted office, not unlawful government action.
- **Named evidence:** No criminal proceedings or arrest during tenure; two-month notice for specified personal civil proceedings; official acts remain attributable to government.
- **Analysis:** Temporary personal immunity prevents litigation from disabling the Head of State while judicial review of governmental action preserves rule of law.
- **Qualification:** Immunity is procedural and time-bound; it is not permanent substantive impunity.
- **Prelims trap:** Do not say that presidential acts or Union action are beyond judicial review.
- **Mains use:** Contrast immunity of the office-holder with reviewability of the underlying state action.
- **Mini recap:** Continuity is protected; legality is not extinguished.

Paragraph model: Article 361 protects uninterrupted office, not unlawful government action. No criminal proceedings or arrest during tenure; two-month notice for specified personal civil proceedings; official acts remain attributable to government. Temporary personal immunity prevents litigation from disabling the Head of State while judicial review of governmental action preserves rule of law. Immunity is procedural and time-bound; it is not permanent substantive impunity.

CLOSING RECALL FLOW - PRESIDENTIAL IMMUNITIES UNDER ARTICLE 361

START / CONCEPT: Presidential immunities under Article 361

|

v

EXACT TERMS: Presidential · Immunities · Article · President · constitutional procedure · institutional limit

|

v

MECHANISM / ARGUMENT: Identify the controlling Article, trace the institutional procedure, then state its limit and accountability consequence.

|

v

CONSEQUENCE / CONTRAST: The rule preserves constitutional continuity while keeping executive power accountable within parliamentary government.

|

v

UPSC TRAP / ANSWER-USE: Do not transfer the electoral college, removal threshold, vacancy deadline or substantive power of one office to the other.

|

v

ANSWER-GRABBING FORMULATION: Presidential immunities under Article 361 protect office continuity, not substantive impunity.

SESSION 9 - CONSTITUTIONAL POSITION: DIGNITY WITHOUT A RIVAL MANDATE

VISUAL FIRST

CONSTITUTIONAL RULE

|

v

Articles 53, 74 and 75; 42nd Amendment altered Article 74(1); 44th Amendment inserted its reconsideration proviso; Shamsher Singh (1974).

|

v

INSTITUTIONAL EFFECT

|

v

Sentinel, not rival executive: advise, warn, reconsider once, then comply.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Constitutional Position: Dignity Without A Rival Mandate: the President embodies the State but normally acts through the politically responsible Council of Ministers.

Technical definition: Constitutional Position: Dignity Without A Rival Mandate: articles 53, 74 and 75, as shaped by the 42nd and 44th Amendments, bind advice after one reconsideration.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Constitutional position means dignity without a rival mandate: formal power and democratic responsibility are deliberately separated.

MUST-WRITE KEYWORDS

- Constitutional
- Position
- Dignity
- Without
- Rival

- Mandate

How to use them: Frame the answer through Constitutional; define Position, connect Dignity with Without to explain the mechanism, and use Rival for the decisive comparison or qualification.

- [FACT] Article 53 formally vests Union executive power in the President.
- [FACT] Article 74 requires a Council of Ministers headed by the Prime Minister to aid and advise.
- [FACT] The 42nd Amendment made advice expressly binding.
- [FACT] The 44th Amendment permits the President to require reconsideration once; advice tendered after reconsideration must be accepted.
- [FACT] Article 75 ties the Council's survival to collective responsibility to Lok Sabha.
- [ANALYSIS] Ambedkar's formula remains exact: the President is head of the State but not the real executive.

Situational discretion, not a personal policy power

- [ANALYSIS] Appointing a Prime Minister when no party has a clear majority, with the objective test being ability to secure Lok Sabha confidence.
- [ANALYSIS] Requiring a ministry whose majority is credibly disputed to demonstrate confidence on the floor.
- [ANALYSIS] Dismissing a ministry that has lost confidence but refuses to resign.
- [ANALYSIS] Considering whether dissolution advice from a defeated/minority ministry should be accepted where an alternative government is demonstrably available.
- [FACT] K. R. Narayanan returned Union Cabinet advice concerning proposed President's Rule in Uttar Pradesh (1997) and Bihar (1998); reiterated advice would have bound him.
- [LIMIT] The President has no general personal policy discretion. Article 163 textually recognises

some gubernatorial discretion, but only where the Constitution requires it; neither office has an unlimited discretionary domain. Convention, reasoned choice and floor confidence bound each exceptional presidential decision.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** The President is a constitutional sentinel because formal authority is separated from political responsibility.
- **Named evidence:** Articles 53, 74 and 75; 42nd Amendment altered Article 74(1); 44th Amendment inserted its reconsideration proviso; Shamsher Singh (1974).
- **Analysis:** Binding advice preserves parliamentary accountability, while one reconsideration and information rights permit warning and constitutional reflection.
- **Qualification:** Situational choice in a hung House is bounded by the test of demonstrable Lok Sabha confidence.
- **Prelims trap:** The 44th Amendment allows one return of advice, not repeated refusal.
- **Mains use:** Use normal rule -> narrow contingency -> floor test -> qualified verdict.
- **Mini recap:** Sentinel, not rival executive: advise, warn, reconsider once, then comply.

Paragraph model: The President is a constitutional sentinel because formal authority is separated from political responsibility. Articles 53, 74 and 75; 42nd Amendment altered Article 74(1); 44th Amendment inserted its reconsideration proviso; Shamsher Singh (1974). Binding advice preserves parliamentary accountability, while one reconsideration and information rights permit warning and constitutional reflection. Situational choice in a hung House is bounded by the test of demonstrable Lok Sabha confidence.

CLOSING RECALL FLOW - CONSTITUTIONAL POSITION: DIGNITY WITHOUT A RIVAL MANDATE

START / CONCEPT: Constitutional position: dignity without a rival mandate

|

v

EXACT TERMS: Constitutional · Position · Dignity · Without · Rival · Mandate

|

v

MECHANISM / ARGUMENT: Identify the controlling Article, trace the institutional procedure, then state its limit and accountability consequence.

|

v

CONSEQUENCE / CONTRAST: The rule preserves constitutional continuity while keeping executive power accountable within parliamentary government.

|

v

UPSC TRAP / ANSWER-USE: Do not transfer the electoral college, removal threshold, vacancy deadline or substantive power of one office to the other.

|

v

ANSWER-GRABBING FORMULATION: Constitutional position means dignity without a rival mandate: formal power and democratic responsibility are deliberately separated.

SESSION 10 - EXECUTIVE POWERS

VISUAL FIRST

CONSTITUTIONAL RULE

|

v

Articles 53, 75, 77 and 78: appointments, business rules, authenticated action and Prime Ministerial information duties.

|

v

INSTITUTIONAL EFFECT

|

v

Presidential form; ministerial decision; parliamentary responsibility.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Executive powers are formally exercised in the President's name but are allocated by advice, constitutional provisions and statutes.

Technical definition: Executive Powers: articles 53, 77 and 78 structure appointments, authenticated action, information and reconsideration within responsible government.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Executive powers must be explained through both formal presidential authority and the real advice route.

MUST-WRITE KEYWORDS

- Executive
- Powers
- President
- constitutional procedure
- institutional limit
- exam distinction

How to use them: Frame the answer through Executive; define Powers, connect President with constitutional procedure to explain the mechanism, and use institutional limit for the decisive comparison or qualification.

- [FACT] All Union executive action is expressed in the President's name; authenticated orders receive Article 77 protection as to mode.
- [FACT] Appoints the Prime Minister and, on PM advice, other ministers.

- [FACT] Appoints the Attorney General, CAG, Governors, Finance Commission, UPSC members, Election Commissioners under applicable constitutional/statutory processes, and Supreme Court/High Court judges.
- [FACT] Can require the Prime Minister to communicate Council decisions and information and to place before the Council a minister's decision not considered by it (Article 78).
- [FACT] Directly administers Union Territories through administrators to the extent provided by the Constitution.
- [FACT] Appoints commissions for specified constitutional purposes, including Finance Commission and certain official-language/backward-class inquiries where applicable.
- [LIMIT] Appointment in the President's name does not mean unfettered personal selection; constitutional provisions, statutes, judicial doctrine and ministerial advice control different offices.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Presidential executive power is broad in form but allocated through responsible government.
- **Named evidence:** Articles 53, 75, 77 and 78: appointments, business rules, authenticated action and Prime Ministerial information duties.
- **Analysis:** Formal presidential acts create legal continuity, while ministerial advice and Lok Sabha responsibility identify the accountable decision-maker.
- **Qualification:** Appointment form does not imply personal selection power in ordinary majority government.
- **Prelims trap:** Do not convert 'appointed by the President' into 'chosen personally by the President'.
- **Mains use:** Name the formal act, advice route and accountable institution for every power.
- **Mini recap:** Presidential form; ministerial decision; parliamentary responsibility.

Paragraph model: Presidential executive power is broad in form but allocated through responsible government. Articles 53, 75, 77 and 78: appointments, business rules, authenticated action and Prime Ministerial information duties. Formal presidential acts create legal continuity, while ministerial advice and Lok Sabha responsibility identify the accountable decision-maker. Appointment form does not imply personal selection power in ordinary majority government.

CLOSING RECALL FLOW - EXECUTIVE POWERS

START / CONCEPT: Executive powers

|

v

EXACT TERMS: Executive · Powers · President · constitutional procedure · institutional limit · exam distinction

|

v

MECHANISM / ARGUMENT: Identify the controlling Article, trace the institutional procedure, then state its limit and accountability consequence.

|

v

CONSEQUENCE / CONTRAST: The rule preserves constitutional continuity while keeping executive power accountable within parliamentary government.

|

v

UPSC TRAP / ANSWER-USE: Do not transfer the electoral college, removal threshold, vacancy deadline or substantive power of one office to the other.

|

v

ANSWER-GRABBING FORMULATION: Executive powers must be explained through both formal presidential authority and the real advice route.

SESSION 11 - LEGISLATIVE POWERS AND PARLIAMENT

VISUAL FIRST

CONSTITUTIONAL RULE

|

v

Articles 79, 85, 86, 87, 108 and 111: part of Parliament, sessions, messages, address, joint sitting and assent.

|

v

INSTITUTIONAL EFFECT

|

v

The President convenes and completes lawmaking but does not legislate as a House member.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Legislative Powers And Parliament: the President summons, prorogues, addresses and may dissolve Lok Sabha while performing defined legislative formalities.

Technical definition: Legislative Powers And Parliament: legislative powers include messages, joint sittings, Rajya Sabha nominations, assent and presentation of required reports.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Legislative powers and Parliament place the President inside lawmaking without making the office a third legislative chamber.

MUST-WRITE KEYWORDS

- **Legislative**
- **Powers**
- **Parliament**
- **President**
- **constitutional procedure**
- **institutional limit**

How to use them: Frame the answer through Legislative; define Powers, connect Parliament with President to explain the mechanism, and use constitutional procedure for the decisive comparison or qualification.

- [FACT] Summons and prorogues either House and dissolves Lok Sabha on advice/convention.
- [FACT] Addresses Parliament after each general election to Lok Sabha and at the first session each year.
- [FACT] May address either/both Houses and send messages.
- [FACT] Summons a joint sitting of both Houses for an ordinary legislative deadlock under Article 108.
- [FACT] Nominates 12 Rajya Sabha members with special knowledge/practical experience in literature, science, art and social service.
- [FACT] The former power to nominate two Anglo-Indian members to Lok Sabha ceased through the 104th Amendment framework.
- [FACT] Causes the Budget and constitutional reports to be laid before Parliament.
- [FACT] Prior presidential recommendation is constitutionally required for specified financial and other bills.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** The President is constitutionally located within Parliament without becoming an independent legislative chamber.
- **Named evidence:** Articles 79, 85, 86, 87, 108 and 111: part of Parliament, sessions, messages, address, joint sitting and assent.
- **Analysis:** These powers complete legislative procedure and secure institutional communication, but they operate within constitutional text and advice.
- **Qualification:** The President does not sit, debate or vote as a member of either House.

- **Prelims trap:** Being part of Parliament does not make the President an MP.
- **Mains use:** Organise the paragraph as opening Parliament -> participating formally -> completing legislation.
- **Mini recap:** The President convenes and completes lawmaking but does not legislate as a House member.

Paragraph model: The President is constitutionally located within Parliament without becoming an independent legislative chamber. Articles 79, 85, 86, 87, 108 and 111: part of Parliament, sessions, messages, address, joint sitting and assent. These powers complete legislative procedure and secure institutional communication, but they operate within constitutional text and advice. The President does not sit, debate or vote as a member of either House.

CLOSING RECALL FLOW - LEGISLATIVE POWERS AND PARLIAMENT

START / CONCEPT: Legislative powers and Parliament

|

v

EXACT TERMS: Legislative · Powers · Parliament · President · constitutional procedure · institutional limit

|

v

MECHANISM / ARGUMENT: Identify the controlling Article, trace the institutional procedure, then state its limit and accountability consequence.

|

v

CONSEQUENCE / CONTRAST: The rule preserves constitutional continuity while keeping executive power accountable within parliamentary government.

|

v

UPSC TRAP / ANSWER-USE: Do not transfer the electoral college, removal threshold, vacancy deadline or substantive power of one office to the other.

|

v

ANSWER-GRABBING FORMULATION: Legislative powers and Parliament place the President inside lawmaking without making the office a third legislative chamber.

SESSION 12 - VETO UNDER ARTICLE 111 AND RESERVED STATE BILLS

VISUAL FIRST

CONSTITUTIONAL RULE

|

v

Article 111 for Union Bills, Article 201 for reserved State Bills and the 24th Amendment's change to Article 368.

|

v

INSTITUTIONAL EFFECT

|

v

Bill type controls assent, return, withholding and repassage.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Veto Under Article 111 And Reserved State Bills: presidential options differ for ordinary, Money, Amendment and Governor-reserved State Bills.

Technical definition: Veto Under Article 111 And Reserved State Bills: article 111 binds assent after ordinary-bill repassage, while Article 201 contains no equivalent State override.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Veto under Article 111 and reserved State Bills must be separated bill type by bill type.

MUST-WRITE KEYWORDS

- Veto
- Article
- Reserved

- **Bills**
- **President**

How to use them: Frame the answer through Veto; define Article, connect Reserved with Bills to explain the mechanism, and use President for the decisive comparison or qualification.

Parliamentary bills

Bill	Options
Ordinary Bill	Assent; withhold assent; return once for reconsideration
Money Bill	Assent or withhold; cannot return
Constitution Amendment Bill	Must assent after the 24th Amendment

- [FACT] If Parliament re-passes a returned ordinary bill, with or without amendments, the President cannot withhold assent.
- [FACT] Re-passage needs only the ordinary majority applicable to the bill, not a special veto-override majority.
- [FACT] The Constitution gives no fixed deadline for Article 111 assent. This permits a pocket veto.
- [FACT] Zail Singh's handling of the Indian Post Office (Amendment) Bill, 1986 is the standard pocket-veto illustration.
- [ANALYSIS] Absolute veto is most plausible for private-member bills or a government bill after the ministry has resigned; in normal government legislation ministerial advice dominates.

State bills reserved under Article 201

- [FACT] The President may assent, withhold assent, or direct the Governor to return a non-Money Bill.
- [FACT] If the State legislature re-passes and re-presents it, the President is not textually compelled to assent; this differs from Article 111.
- [CURRENT] The 20 November 2025 Article 143 opinion held that courts cannot create rigid timelines or deemed assent, but glaring, prolonged and unexplained inaction can attract limited directions to decide.
- [LIMIT] Article 201 is not a personal federal veto exercised outside Article 74 advice.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Presidential veto analysis must begin with the type and route of the Bill.
- **Named evidence:** Article 111 for Union Bills, Article 201 for reserved State Bills and the 24th Amendment's change to Article 368.
- **Analysis:** Different return and repassage consequences protect deliberation while preventing indefinite defiance of Parliament in the Article 111 ordinary-Bill route.
- **Qualification:** Article 201 contains no equivalent command that State repassage compels presidential assent; Article 74 still governs advice.
- **Prelims trap:** Money Bills cannot be returned; Constitution Amendment Bills require assent.
- **Mains use:** Use a four-row Bill matrix before discussing pocket veto and delay.
- **Mini recap:** Bill type controls assent, return, withholding and repassage.

Paragraph model: Presidential veto analysis must begin with the type and route of the Bill. Article 111 for Union Bills, Article 201 for reserved State Bills and the 24th Amendment's change to Article 368. Different return and repassage consequences protect deliberation while preventing indefinite defiance of Parliament in the Article 111 ordinary-Bill route. Article 201 contains no equivalent command that State repassage compels presidential assent; Article 74 still governs advice.

CLOSING RECALL FLOW - VETO UNDER ARTICLE 111 AND RESERVED STATE BILLS

START / CONCEPT: Veto under Article 111 and reserved State bills

|

v

EXACT TERMS: Veto • Article • Reserved • Bills • President

|

v

MECHANISM / ARGUMENT: Identify the controlling Article, trace the institutional procedure, then state its limit and accountability consequence.

|

v

CONSEQUENCE / CONTRAST: The rule preserves constitutional continuity while keeping executive power accountable within parliamentary government.

|

v

UPSC TRAP / ANSWER-USE: Do not transfer the electoral college, removal threshold, vacancy deadline or substantive power of one office to the other.

|

v

ANSWER-GRABBING FORMULATION: Veto under Article 111 and reserved State Bills must be separated bill type by bill type.

SESSION 13 - ORDINANCE-MAKING POWER UNDER ARTICLE 123

VISUAL FIRST

CONSTITUTIONAL RULE

|

v

Immediate necessity, both Houses not simultaneously in session, Act-like force, mandatory laying, six-week expiry, D. C. Wadhwa and Krishna Kumar Singh.

|

v

INSTITUTIONAL EFFECT

|

v

Urgency permits temporary law; Parliament and review prevent ordinance rule.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Ordinance-Making Power Under Article 123: an ordinance is temporary urgent legislation available when both Houses are not simultaneously in session.

Technical definition: Ordinance-Making Power Under Article 123: article 123 requires immediate necessity, parliamentary competence, laying and cessation six weeks after later reassembly.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Ordinance-making under Article 123 bridges time but cannot become a substitute for Parliament.

MUST-WRITE KEYWORDS

- Ordinance-Making
- Power
- Article
- President
- constitutional procedure
- institutional limit

How to use them: Frame the answer through Ordinance-Making; define Power, connect Article with President to explain the mechanism, and use constitutional procedure for the decisive comparison or qualification.

- [FACT] An ordinance may be promulgated except when **both Houses are in session**. It is enough that one House is not sitting.
- [FACT] The President must be satisfied that circumstances require immediate action; this satisfaction is ministerially formed and judicially reviewable on limited grounds.

- [FACT] It has the same force and effect as an Act of Parliament but only within Parliament's legislative competence and constitutional limits.
- [FACT] It may amend or repeal a Central Act and may operate retrospectively, subject especially to Article 20(1).
- [FACT] It cannot abridge Fundamental Rights and cannot amend the Constitution.
- [FACT] It must be laid before both Houses and ceases six weeks after the later date of their reassembly, unless disapproved earlier by both Houses.
- [FACT] The President may withdraw it at any time on advice.
- [ANALYSIS] Its maximum practical life is approximately six months plus six weeks because six months is the maximum constitutional gap between parliamentary sessions.

Judicial controls

- [FACT] *R. C. Cooper* (1970): ordinance satisfaction is not completely beyond review.
- [FACT] *D. C. Wadhwa* (1986 judgment): routine re-promulgation without legislative consideration is a fraud on the Constitution.
- [FACT] *Krishna Kumar Singh* (2017), seven judges, 5:2: laying is mandatory; re-promulgation subverts legislative supremacy; enduring rights do not automatically survive every lapsed ordinance.
- [ANALYSIS] The ordinance power is legitimate for urgency, not for avoiding an inconvenient House.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Article 123 is an urgent temporary legislative bridge, not an executive substitute for Parliament.
- **Named evidence:** Immediate necessity, both Houses not simultaneously in session, Act-like force, mandatory laying, six-week expiry, *D. C. Wadhwa* and *Krishna Kumar Singh*.
- **Analysis:** Temporary force addresses genuine timing gaps; laying and anti-re-promulgation doctrine restore legislative supremacy.
- **Qualification:** An ordinance remains subject to legislative competence, Fundamental Rights and judicial review.
- **Prelims trap:** One House not sitting is enough; both Houses need not be dissolved.
- **Mains use:** Write trigger -> legal force -> expiry -> abuse -> judicial control.
- **Mini recap:** Urgency permits temporary law; Parliament and review prevent ordinance rule.

Paragraph model: Article 123 is an urgent temporary legislative bridge, not an executive substitute for Parliament. Immediate necessity, both Houses not simultaneously in session, Act-like force, mandatory laying, six-week expiry, *D. C. Wadhwa* and *Krishna Kumar Singh*. Temporary force addresses genuine timing gaps; laying and anti-re-promulgation doctrine restore legislative supremacy. An ordinance remains subject to legislative competence, Fundamental Rights and judicial review.

CLOSING RECALL FLOW - ORDINANCE-MAKING POWER UNDER ARTICLE 123

START / CONCEPT: Ordinance-making power under Article 123

|

v

EXACT TERMS: Ordinance-Making · Power · Article · President · constitutional procedure · institutional limit

|

v

MECHANISM / ARGUMENT: Identify the controlling Article, trace the institutional procedure, then state its limit and accountability consequence.

|

v

CONSEQUENCE / CONTRAST: The rule preserves constitutional continuity while keeping executive power accountable within parliamentary government.

|

v

UPSC TRAP / ANSWER-USE: Do not transfer the electoral college, removal threshold, vacancy deadline or substantive power of one office to the other.

|

v

ANSWER-GRABBING FORMULATION: Ordinance-making under Article 123 bridges time but cannot become a substitute for Parliament.

SESSION 14 - FINANCIAL, JUDICIAL, DIPLOMATIC, MILITARY AND EMERGENCY POWERS

VISUAL FIRST

CONSTITUTIONAL RULE

|

v

Money-Bill and grant recommendations, Article 143, appointments, Supreme Command and Articles 352, 356 and 360.

|

v

INSTITUTIONAL EFFECT

|

v

Broad formal portfolio; specific constitutional controls.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Financial, Judicial, Diplomatic, Military And Emergency Powers: the President performs formal financial, judicial, diplomatic, military and emergency functions under separate constitutional controls.

Technical definition: Financial, Judicial, Diplomatic, Military And Emergency Powers: budget recommendations, Article 143, command form and Part XVIII powers remain subject to advice, law and review.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

These power clusters are constitutionally broad in form but institutionally divided in exercise.

MUST-WRITE KEYWORDS

- Financial
- Judicial
- Diplomatic
- Military
- Emergency
- Powers

How to use them: Frame the answer through Financial; define Judicial, connect Diplomatic with Military to explain the mechanism, and use Emergency for the decisive comparison or qualification.

Financial

- [FACT] A Money Bill needs prior presidential recommendation.
- [FACT] No demand for a grant can be made except on presidential recommendation.
- [FACT] The Annual Financial Statement is caused to be laid before Parliament.
- [FACT] The President constitutes a Finance Commission every five years or earlier and can authorise advances from the Contingency Fund pending parliamentary approval.

Judicial

- [FACT] Appoints Supreme Court and High Court judges under the constitutional appointments framework.
- [FACT] May seek the Supreme Court's advisory opinion under Article 143. The opinion is not binding in the same way as an adjudicated decree.
- [FACT] Exercises clemency under Article 72.

Diplomatic, military and emergency

- [FACT] International treaties and agreements are formally concluded in the President's name but remain governed by the constitutional distribution of executive/legislative power.
- [FACT] The President is Supreme Commander of the defence forces; operational authority belongs to elected government under law.

- [FACT] National, State and Financial Emergency proclamations are presidential acts under Articles 352, 356 and 360, controlled by advice, parliamentary approval and judicial review.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Presidential power clusters are constitutional gateways whose real exercise remains institutionally distributed.
- **Named evidence:** Money-Bill and grant recommendations, Article 143, appointments, Supreme Command and Articles 352, 356 and 360.
- **Analysis:** The President supplies formal authority, but advice, statute, parliamentary approval and judicial review allocate operational control.
- **Qualification:** Each emergency provision has its own trigger, territorial scope and approval safeguards.
- **Prelims trap:** Do not infer operational military command or personal emergency discretion from formal titles.
- **Mains use:** For each cluster state provision, advice, approving body and review.
- **Mini recap:** Broad formal portfolio; specific constitutional controls.

Paragraph model: Presidential power clusters are constitutional gateways whose real exercise remains institutionally distributed. Money-Bill and grant recommendations, Article 143, appointments, Supreme Command and Articles 352, 356 and 360. The President supplies formal authority, but advice, statute, parliamentary approval and judicial review allocate operational control. Each emergency provision has its own trigger, territorial scope and approval safeguards.

CLOSING RECALL FLOW - FINANCIAL, JUDICIAL, DIPLOMATIC, MILITARY AND EMERGENCY POWERS

START / CONCEPT: Financial, judicial, diplomatic, military and emergency powers

|

v

EXACT TERMS: Financial · Judicial · Diplomatic · Military · Emergency · Powers

|

v

MECHANISM / ARGUMENT: Identify the controlling Article, trace the institutional procedure, then state its limit and accountability consequence.

|

v

CONSEQUENCE / CONTRAST: The rule preserves constitutional continuity while keeping executive power accountable within parliamentary government.

|

v

UPSC TRAP / ANSWER-USE: Do not transfer the electoral college, removal threshold, vacancy deadline or substantive power of one office to the other.

|

v

ANSWER-GRABBING FORMULATION: These power clusters are constitutionally broad in form but institutionally divided in exercise.

SESSION 15 - PARDONING POWER UNDER ARTICLE 72

VISUAL FIRST

CONSTITUTIONAL RULE

|

v

Pardon, reprieve, respite, remission and commutation; Maru Ram, Kehar Singh and Epuru Sudhakar.

|

v

INSTITUTIONAL EFFECT

|

v

Mercy is broad in purpose but bounded by field, advice and rule of law.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Pardoning Power Under Article 72: article 72 authorises five forms of clemency across Union-field, court-martial and death-sentence cases.

Technical definition: Pardoning Power Under Article 72: Maru Ram (1980), Kehar Singh (1988) and Epuru Sudhakar (2006) establish advice, merits reconsideration and limited review.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Pardoning power under Article 72 is public constitutional power, not personal mercy.

MUST-WRITE KEYWORDS

- **Pardoning**
- **Power**
- **Article**
- **President**
- **constitutional procedure**
- **institutional limit**

How to use them: Frame the answer through Pardoning; define Power, connect Article with President to explain the mechanism, and use constitutional procedure for the decisive comparison or qualification.

Jurisdiction

- [FACT] Cases where punishment/sentence is by court-martial.
- [FACT] Offences against laws concerning matters to which Union executive power extends.
- [FACT] Every case where the sentence is death.

Five forms

Form	Meaning
Pardon	Removes punishment and ordinarily the disqualifying consequences of conviction
Commutation	Replaces one form of punishment with a lighter form
Remission	Reduces the period without changing the character of punishment
Respite	Awards a lesser sentence because of a special fact such as pregnancy/disability
Reprieve	Temporarily stays execution to permit consideration of relief

Advice, merits and review

- [FACT] *Maru Ram (1980)*: clemency is exercised on binding ministerial advice.
- [FACT] *Kehar Singh (1988)* (**1988 judgment**): the executive may examine the merits afresh; the President is not an appellate court and need not give a judicial-style hearing.
- [FACT] *Epuru Sudhakar (2006)*: limited review lies for mala fides, arbitrariness, non-application of mind and relevant/irrelevant-material defects.
- [FACT] Unexplained mercy-petition delay can have constitutional consequences in death-sentence cases, but no automatic numerical rule replaces case-sensitive review.

President versus Governor

Point	President, Article 72	Governor, Article 161
Court-martial	Can grant all forms	No power
Death sentence	Can pardon and grant lesser forms	Cannot pardon, but may suspend/remit/commute
Ordinary offences	Union executive field	State executive field
Advice	Union Council	State Council

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Article 72 is public constitutional clemency, not private benevolence.
- **Named evidence:** Pardon, reprieve, respite, remission and commutation; Maru Ram, Kehar Singh and Epuru Sudhakar.
- **Analysis:** Clemency permits correction of exceptional harshness and consideration of post-conviction factors, while advice and limited review prevent arbitrary mercy.
- **Qualification:** Courts review decision-making defects, not the desirability of mercy as an appellate court.
- **Prelims trap:** Governor cannot pardon a death sentence or exercise court-martial clemency, though lesser death-sentence relief is possible.
- **Mains use:** State scope, five forms, advice, review and Article 161 contrast.
- **Mini recap:** Mercy is broad in purpose but bounded by field, advice and rule of law.

Paragraph model: Article 72 is public constitutional clemency, not private benevolence. Pardon, reprieve, respite, remission and commutation; Maru Ram, Kehar Singh and Epuru Sudhakar. Clemency permits correction of exceptional harshness and consideration of post-conviction factors, while advice and limited review prevent arbitrary mercy. Courts review decision-making defects, not the desirability of mercy as an appellate court.

CLOSING RECALL FLOW - PARDONING POWER UNDER ARTICLE 72

START / CONCEPT: Pardoning power under Article 72

|

v

EXACT TERMS: Pardoning · Power · Article · President · constitutional procedure · institutional limit

|

v

MECHANISM / ARGUMENT: Identify the controlling Article, trace the institutional procedure, then state its limit and accountability consequence.

|

v

CONSEQUENCE / CONTRAST: The rule preserves constitutional continuity while keeping executive power accountable within parliamentary government.

|

v

UPSC TRAP / ANSWER-USE: Do not transfer the electoral college, removal threshold, vacancy deadline or substantive power of one office to the other.

|

v

ANSWER-GRABBING FORMULATION: Pardoning power under Article 72 is public constitutional power, not personal mercy.

SESSION 16 - VICE-PRESIDENT: ELECTION AND QUALIFICATIONS

VISUAL FIRST

CONSTITUTIONAL RULE

|
v

Article 66 includes elected and nominated MPs, equal votes, PR-STV, secret ballot and Rajya Sabha qualification.

|
v

INSTITUTIONAL EFFECT

|
v

Vice-President: all MPs, equal votes, parliamentary role.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Vice-President: Election And Qualifications: the Vice-President is elected by all elected and nominated MPs, with no State legislator participating.

Technical definition: Vice-President: Election And Qualifications: article 66 uses PR-STV and secret ballot; candidature requires Rajya Sabha qualification, 20 proposers and 20 seconders.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Vice-President election and qualifications reflect the office's principal parliamentary role.

MUST-WRITE KEYWORDS

- Vice-President
- Election
- Qualifications
- President
- constitutional procedure
- institutional limit

How to use them: Frame the answer through Vice-President; define Election, connect Qualifications with President to explain the mechanism, and use constitutional procedure for the decisive comparison or qualification.

- [FACT] The electoral college consists of **all members of both Houses of Parliament**, elected and nominated.
- [FACT] No State or UT legislator votes.
- [FACT] Election uses PR-STV and secret ballot; all votes have equal value.
- [FACT] Qualifications: citizen, 35 years, qualified for election to Rajya Sabha, and no disqualifying office of profit.
- [FACT] A candidate needs 20 proposers and 20 seconders and the statutory deposit.
- [FACT] The President, or a person appointed by the President, administers the oath.
- [FACT] Election disputes are decided finally by the Supreme Court under Article 71.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** The Vice-President's Parliament-only electorate matches the office's regular parliamentary function.
- **Named evidence:** Article 66 includes elected and nominated MPs, equal votes, PR-STV, secret ballot and Rajya Sabha qualification.
- **Analysis:** Removing State legislatures from the college reflects that the office ordinarily chairs Rajya Sabha rather than embodying the federal Union as Head of State.
- **Qualification:** The title 'Vice-President' does not imply an ordinary executive portfolio.
- **Prelims trap:** Nominated MPs are included here but excluded from presidential election.
- **Mains use:** Contrast Article 66 with Article 54 in the same paragraph.
- **Mini recap:** Vice-President: all MPs, equal votes, parliamentary role.

Paragraph model: The Vice-President's Parliament-only electorate matches the office's regular parliamentary function. Article 66 includes elected and nominated MPs, equal votes, PR-STV, secret ballot and Rajya Sabha qualification. Removing State legislatures from the college reflects that the office ordinarily chairs Rajya Sabha rather

than embodying the federal Union as Head of State. The title 'Vice-President' does not imply an ordinary executive portfolio.

CLOSING RECALL FLOW - VICE-PRESIDENT: ELECTION AND QUALIFICATIONS

START / CONCEPT: Vice-President: election and qualifications

|

v

EXACT TERMS: Vice-President · Election · Qualifications · President · constitutional procedure · institutional limit

|

v

MECHANISM / ARGUMENT: Identify the controlling Article, trace the institutional procedure, then state its limit and accountability consequence.

|

v

CONSEQUENCE / CONTRAST: The rule preserves constitutional continuity while keeping executive power accountable within parliamentary government.

|

v

UPSC TRAP / ANSWER-USE: Do not transfer the electoral college, removal threshold, vacancy deadline or substantive power of one office to the other.

|

v

ANSWER-GRABBING FORMULATION: Vice-President election and qualifications reflect the office's principal parliamentary role.

SESSION 17 - VICE-PRESIDENTIAL TERM, RESIGNATION, REMOVAL AND VACANCY

VISUAL FIRST

CONSTITUTIONAL RULE

|

v

Rajya Sabha initiation, majority of all then members, Lok Sabha agreement, fourteen days' notice and Article 68 prompt vacancy election.

|

v

INSTITUTIONAL EFFECT

|

v

VP removal is Rajya Sabha-led; VP vacancy is filled as soon as possible.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Vice-Presidential Term, Resignation, Removal And Vacancy: the Vice-President serves five years and is removed through a Rajya Sabha-initiated process rather than impeachment.

Technical definition: Vice-Presidential Term, Resignation, Removal And Vacancy: articles 67-68 require an effective-majority Rajya Sabha resolution, Lok Sabha agreement and prompt election after casual vacancy.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Vice-presidential term, removal and vacancy rules differ deliberately from presidential safeguards.

MUST-WRITE KEYWORDS

- Vice-Presidential
- Term
- Resignation
- Removal
- Vacancy
- President

How to use them: Frame the answer through Vice-Presidential; define Term, connect Resignation with Removal to explain the mechanism, and use Vacancy for the decisive comparison or qualification.

- [FACT] Term: five years; the Vice-President continues until the successor enters office.
- [FACT] Resignation is addressed to the President.
- [FACT] Removal is by a resolution of Rajya Sabha passed by a majority of **all the then members** (effective majority) and agreed to by Lok Sabha.
- [FACT] Only Rajya Sabha can initiate; at least 14 days' notice is required; no constitutional ground is stated.
- [LIMIT] This is removal, not impeachment. Lok Sabha agreement is by its ordinary voting majority unless a contrary special rule exists.
- [FACT] Election for a vacancy expected on expiry must be completed before expiry.
- [FACT] A casual vacancy must be filled **as soon as possible**; unlike the President, Article 68 specifies no six-month outer deadline.
- [FACT] The successor in a casual vacancy receives a fresh five-year term.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Article 67(b) makes Vice-Presidential removal a chamber-led process, not impeachment.
- **Named evidence:** Rajya Sabha initiation, majority of all then members, Lok Sabha agreement, fourteen days' notice and Article 68 prompt vacancy election.
- **Analysis:** Rajya Sabha leads because the Vice-President is its Chairman; the lower threshold reflects a presiding-office accountability design rather than removal of the Head of State.
- **Qualification:** No constitutional ground is specified and the casual-vacancy successor receives a fresh five-year term.
- **Prelims trap:** Do not import the President's two-thirds-total-membership or six-month rules.
- **Mains use:** Compare initiator, majority, ground, deadline and successor term.
- **Mini recap:** VP removal is Rajya Sabha-led; VP vacancy is filled as soon as possible.

Paragraph model: Article 67(b) makes Vice-Presidential removal a chamber-led process, not impeachment. Rajya Sabha initiation, majority of all then members, Lok Sabha agreement, fourteen days' notice and Article 68 prompt vacancy election. Rajya Sabha leads because the Vice-President is its Chairman; the lower threshold reflects a presiding-office accountability design rather than removal of the Head of State. No constitutional ground is specified and the casual-vacancy successor receives a fresh five-year term.

CLOSING RECALL FLOW - VICE-PRESIDENTIAL TERM, RESIGNATION, REMOVAL AND VACANCY

START / CONCEPT: Vice-Presidential term, resignation, removal and vacancy

|

v

EXACT TERMS: Vice-Presidential • Term • Resignation • Removal • Vacancy • President

|

v

MECHANISM / ARGUMENT: Identify the controlling Article, trace the institutional procedure, then state its limit and accountability consequence.

|

v

CONSEQUENCE / CONTRAST: The rule preserves constitutional continuity while keeping executive power accountable within parliamentary government.

|

v

UPSC TRAP / ANSWER-USE: Do not transfer the electoral college, removal threshold, vacancy deadline or substantive power of one office to the other.

|

v

ANSWER-GRABBING FORMULATION: Vice-presidential term, removal and vacancy rules differ deliberately from presidential safeguards.

SESSION 18 - THE VICE-PRESIDENT AS RAJYA SABHA CHAIRMAN

VISUAL FIRST

CONSTITUTIONAL RULE

|

v

Articles 64, 92 and 100; Tenth Schedule adjudication subject to Kihoto Hollohan review.

|

v

INSTITUTIONAL EFFECT

|

v

Authority comes from rules; legitimacy comes from impartial application.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: The Vice-President As Rajya Sabha Chairman: the Vice-President's regular constitutional work is presiding over Rajya Sabha as a non-member Chairman.

Technical definition: The Vice-President As Rajya Sabha Chairman: articles 64, 92 and 100 govern presiding, casting vote and the special rule during the Chairman's own removal debate.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The Vice-President as Rajya Sabha Chairman is tested by procedural authority and perceived impartiality.

MUST-WRITE KEYWORDS

- Vice-President
- Rajya
- Sabha
- Chairman
- President
- constitutional procedure

How to use them: Frame the answer through Vice-President; define Rajya, connect Sabha with Chairman to explain the mechanism, and use President for the decisive comparison or qualification.

- [FACT] Article 64 makes the Vice-President ex-officio Chairman of Rajya Sabha.
- [FACT] The Chairman is not a Rajya Sabha member and has no first-instance vote; Article 100 gives a casting vote when votes are equal.
- [FACT] Presides, maintains order, interprets rules, decides points of order/admissibility and coordinates committee references under House rules.
- [FACT] Decides Tenth Schedule disqualification questions for Rajya Sabha members; *Kihoto Hollohan* makes the decision judicially reviewable.
- [FACT] Does not certify Money Bills; that constitutional function belongs to the Lok Sabha Speaker.
- [FACT] During consideration of the Vice-President's own removal resolution, Article 92 bars him/her from presiding. The Vice-President may speak/take part but cannot vote even though normally possessing a casting vote.
- [ANALYSIS] Because Rajya Sabha articulates State interests and revising scrutiny, the office's practical authority depends heavily on demonstrable neutrality.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** The Vice-President's legitimacy as Rajya Sabha Chairman depends on procedurally neutral power.
- **Named evidence:** Articles 64, 92 and 100; Tenth Schedule adjudication subject to Kihoto Hollohan review.
- **Analysis:** Control over order, admissibility and defection can shape political outcomes, so consistent reasons and impartial procedure convert legal authority into institutional trust.
- **Qualification:** The Chairman is not a Rajya Sabha member and cannot vote during consideration of his or her own removal.

- **Prelims trap:** The Chairman has no first vote and does not certify Money Bills.
- **Mains use:** Compare the Chairman with the Lok Sabha Speaker and end on federal-chamber neutrality.
- **Mini recap:** Authority comes from rules; legitimacy comes from impartial application.

Paragraph model: The Vice-President's legitimacy as Rajya Sabha Chairman depends on procedurally neutral power. Articles 64, 92 and 100; Tenth Schedule adjudication subject to Kihoto Hollohan review. Control over order, admissibility and defection can shape political outcomes, so consistent reasons and impartial procedure convert legal authority into institutional trust. The Chairman is not a Rajya Sabha member and cannot vote during consideration of his or her own removal.

CLOSING RECALL FLOW - THE VICE-PRESIDENT AS RAJYA SABHA CHAIRMAN

START / CONCEPT: The Vice-President as Rajya Sabha Chairman
 |
 v
 EXACT TERMS: Vice-President · Rajya · Sabha · Chairman · President · constitutional procedure
 |
 v
 MECHANISM / ARGUMENT: Identify the controlling Article, trace the institutional procedure, then state its limit and accountability consequence.
 |
 v
 CONSEQUENCE / CONTRAST: The rule preserves constitutional continuity while keeping executive power accountable within parliamentary government.
 |
 v
 UPSC TRAP / ANSWER-USE: Do not transfer the electoral college, removal threshold, vacancy deadline or substantive power of one office to the other.
 |
 v
 ANSWER-GRABBING FORMULATION: The Vice-President as Rajya Sabha Chairman is tested by procedural authority and perceived impartiality.

SESSION 19 - ACTING AS PRESIDENT

VISUAL FIRST

CONSTITUTIONAL RULE
 |
 v
 Vice-President acts during vacancy or inability; Article 64 suspends Chair duties; Deputy Chairman presides; Article 62 governs election after vacancy.
 |
 v
 INSTITUTIONAL EFFECT
 |
 v
 Temporary discharge, no dual role, no inherited remainder.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Acting As President: the Vice-President temporarily discharges presidential functions during vacancy or inability without inheriting the unexpired term.

Technical definition: Acting As President: article 65 separates acting-presidential duties from Rajya Sabha Chairmanship until a President resumes or is elected.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Acting as President preserves continuity while keeping the two constitutional offices legally distinct.

MUST-WRITE KEYWORDS

- Acting
- President
- constitutional procedure
- institutional limit

- exam distinction

How to use them: Frame the answer through Acting; define President, connect constitutional procedure with institutional limit to explain the mechanism, and use exam distinction for the decisive comparison or qualification.

- [FACT] The Vice-President acts as President when the presidential office falls vacant and discharges functions when the President is unable because of absence, illness or another cause.
- [FACT] During that period, the Vice-President does not perform Rajya Sabha Chairman duties; the Deputy Chairman performs the presiding function.
- [FACT] The acting Vice-President receives presidential emoluments/privileges for the period rather than Chairman's salary.
- [FACT] The acting arrangement after a presidential casual vacancy ends when the new President enters office; the presidential election must occur within six months.
- [LIMIT] The six-month rule attaches to filling the **presidential** vacancy, not to filling a Vice-Presidential vacancy.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Article 65 preserves presidential continuity without merging the two offices.
- **Named evidence:** Vice-President acts during vacancy or inability; Article 64 suspends Chair duties; Deputy Chairman presides; Article 62 governs election after vacancy.
- **Analysis:** Temporary transfer prevents executive interruption while separating presidential emoluments and functions from the Vice-President's normal parliamentary role.
- **Qualification:** Acting is not succession and ends when the President resumes or a new President enters office.
- **Prelims trap:** The six-month election rule concerns the presidential vacancy, not the Vice-Presidency.
- **Mains use:** Draw vacancy -> acting VP -> Deputy Chairman -> election/resumption.
- **Mini recap:** Temporary discharge, no dual role, no inherited remainder.

Paragraph model: Article 65 preserves presidential continuity without merging the two offices. Vice-President acts during vacancy or inability; Article 64 suspends Chair duties; Deputy Chairman presides; Article 62 governs election after vacancy. Temporary transfer prevents executive interruption while separating presidential emoluments and functions from the Vice-President's normal parliamentary role. Acting is not succession and ends when the President resumes or a new President enters office.

CLOSING RECALL FLOW - ACTING AS PRESIDENT

START / CONCEPT: Acting as President

|
v

EXACT TERMS: Acting · President · constitutional procedure · institutional limit · exam distinction

|
v

MECHANISM / ARGUMENT: Identify the controlling Article, trace the institutional procedure, then state its limit and accountability consequence.

|
v

CONSEQUENCE / CONTRAST: The rule preserves constitutional continuity while keeping executive power accountable within parliamentary government.

|
v

UPSC TRAP / ANSWER-USE: Do not transfer the electoral college, removal threshold, vacancy deadline or substantive power of one office to the other.

|
v

ANSWER-GRABBING FORMULATION: Acting as President preserves continuity while keeping the two constitutional offices legally distinct.

SESSION 20 - CURRENT CONSTITUTIONAL-OFFICE CONTROL

VISUAL FIRST

CONSTITUTIONAL RULE

|

v

Official profiles: Droupadi Murmu in office since 25 July 2022; C. P. Radhakrishnan elected 9 September and assumed office 12 September 2025.

|

v

INSTITUTIONAL EFFECT

|

v

Doctrine is durable; office-holder evidence is date-stamped.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Current constitutional-office control identifies the serving President and Vice-President and dates legal developments precisely.

Technical definition: Current Constitutional-Office Control: official profiles checked 28 August 2026 and the 20 November 2025 Article 143 opinion bound the current-status claims.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Current constitutional-office control must remain dated evidence rather than timeless doctrine.

MUST-WRITE KEYWORDS

- **Constitutional-Office**
- **Control**
- **President**
- **constitutional procedure**
- **institutional limit**

How to use them: Frame the answer through Constitutional-Office; define Control, connect President with constitutional procedure to explain the mechanism, and use institutional limit for the decisive comparison or qualification.

- [CURRENT] Official profiles checked **28 August 2026** list Droupadi Murmu as the 15th President, in office since 25 July 2022, and C. P. Radhakrishnan as the 15th Vice-President, in office since 12 September 2025.
- [CURRENT] Jagdeep Dhankhar's resignation in July 2025 created a Vice-Presidential casual vacancy.
- [CURRENT] The Election Commission's official result records C. P. Radhakrishnan elected on 9 September 2025: 452 valid votes to B. Sudershan Reddy's 300, with 15 invalid ballots.
- [CURRENT] C. P. Radhakrishnan entered office on 12 September 2025 as the 15th Vice-President.
- [ANALYSIS] This is the cleanest current example for Article 68: prompt election, no six-month textual deadline, and a fresh five-year term.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** Current office-holder facts are dated illustrations, not permanent constitutional doctrine.
- **Named evidence:** Official profiles: Droupadi Murmu in office since 25 July 2022; C. P. Radhakrishnan elected 9 September and assumed office 12 September 2025.
- **Analysis:** The 2025 Vice-Presidential transition illustrates Article 68's prompt election and fresh-term rule.
- **Qualification:** Names, dates and election figures must be rechecked before use because they can change while Articles remain stable.
- **Prelims trap:** Never use a current office-holder claim without a date and official source.
- **Mains use:** Use the transition as an example after explaining Article 68, not as the rule itself.
- **Mini recap:** Doctrine is durable; office-holder evidence is date-stamped.

Paragraph model: Current office-holder facts are dated illustrations, not permanent constitutional doctrine. Official profiles: Droupadi Murmu in office since 25 July 2022; C. P. Radhakrishnan elected 9 September and assumed office 12 September 2025. The 2025 Vice-Presidential transition illustrates Article 68's prompt election and fresh-term rule. Names, dates and election figures must be rechecked before use because they can change while Articles remain stable.

CLOSING RECALL FLOW - CURRENT CONSTITUTIONAL-OFFICE CONTROL

START / CONCEPT: Current constitutional-office control

|

v

EXACT TERMS: Constitutional-Office • Control • President • constitutional procedure • institutional limit

|

v

MECHANISM / ARGUMENT: Identify the controlling Article, trace the institutional procedure, then state its limit and accountability consequence.

|

v

CONSEQUENCE / CONTRAST: The rule preserves constitutional continuity while keeping executive power accountable within parliamentary government.

|

v

UPSC TRAP / ANSWER-USE: Do not transfer the electoral college, removal threshold, vacancy deadline or substantive power of one office to the other.

|

v

ANSWER-GRABBING FORMULATION: Current constitutional-office control must remain dated evidence rather than timeless doctrine.

SESSION 21 - MASTER COMPARISON AND TRAP FIREWALL

VISUAL FIRST

CONSTITUTIONAL RULE

|

v

Articles 54-71: colleges, vote values, qualifications, oath, resignation, removal, vacancies, Article 71 disputes and Article 65 acting role.

|

v

INSTITUTIONAL EFFECT

|

v

Match every rule to its office, Article, institution and consequence.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Master Comparison And Trap Firewall: the master comparison separates electoral colleges, qualifications, removal, vacancy and regular functions of both offices.

Technical definition: Master Comparison And Trap Firewall: close-option traps are solved by matching each rule to its Article, institution and procedural consequence.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Master comparison and trap firewall convert similar-looking presidential and vice-presidential rules into exam-safe distinctions.

MUST-WRITE KEYWORDS

- Master
- Comparison
- Firewall
- President
- constitutional procedure

How to use them: Frame the answer through Master; define Comparison, connect Firewall with President to explain the mechanism, and use constitutional procedure for the decisive comparison or qualification.

Test	President	Vice-President
Electoral college	Elected MPs + elected State/Delhi/Puducherry MLAs	Elected + nominated MPs only
Vote value	Weighted	Equal
Qualification for House	Lok Sabha	Rajya Sabha
Oath by	CJI/senior-most available SC judge	President/person appointed
Resignation to	Vice-President	President
Removal	Either House starts; 2/3 total in both	RS starts; effective majority + LS agreement
Ground	Violation of Constitution	None stated
Casual-vacancy election	Within six months	As soon as possible
Regular function	Head of State on advice	Rajya Sabha Chairman

Trap firewall

- Nominated MPs do not elect the President but do elect the Vice-President and may impeach the President.
- MLAs elect the President but neither elect the Vice-President nor impeach the President.
- MLCs participate in neither election.
- President: qualified for Lok Sabha; Vice-President: qualified for Rajya Sabha.
- Presidential ordinary bill can be returned once; Money Bill cannot; amendment bill must receive assent.
- Article 123 is available when one or both Houses are not in session, not only when both are adjourned.
- Governor cannot pardon a death sentence but can suspend, remit or commute it.
- Article 71 preserves acts done before an election is declared void.
- No fixed Article 111 assent deadline exists.
- VP removal is not impeachment and needs no stated ground.
- VP casual vacancy has no six-month rule; presidential casual vacancy does.
- VP acting as President does not simultaneously chair Rajya Sabha.

HOW TO WRITE THE ANSWER PARAGRAPH

- **Claim:** A comparison grid is the safest way to prevent President-Vice-President rule transfer.
- **Named evidence:** Articles 54-71: colleges, vote values, qualifications, oath, resignation, removal, vacancies, Article 71 disputes and Article 65 acting role.
- **Analysis:** Placing each rule against the office's function reveals why the President has federal election and impeachment while the Vice-President has Parliament-only election and Rajya Sabha-led removal.
- **Qualification:** Similarity of five-year terms and Article 71 jurisdiction does not erase procedural differences.
- **Prelims trap:** Track nominated MPs, MLAs, House qualification, removal majority and vacancy deadline separately.
- **Mains use:** Use the grid as a conclusion or revision spine for comparison questions.
- **Mini recap:** Match every rule to its office, Article, institution and consequence.

Paragraph model: A comparison grid is the safest way to prevent President-Vice-President rule transfer. Articles 54-71: colleges, vote values, qualifications, oath, resignation, removal, vacancies, Article 71 disputes and Article 65 acting role. Placing each rule against the office's function reveals why the President has federal election and impeachment while the Vice-President has Parliament-only election and Rajya Sabha-led removal. Similarity of five-year terms and Article 71 jurisdiction does not erase procedural differences.

CLOSING RECALL FLOW - MASTER COMPARISON AND TRAP FIREWALL

START / CONCEPT: Master comparison and trap firewall

|

v

EXACT TERMS: Master · Comparison · Firewall · President · constitutional procedure

|

v

MECHANISM / ARGUMENT: Identify the controlling Article, trace the institutional procedure, then state its limit and accountability consequence.

|

v

CONSEQUENCE / CONTRAST: The rule preserves constitutional continuity while keeping executive power accountable within parliamentary government.

|

v

UPSC TRAP / ANSWER-USE: Do not transfer the electoral college, removal threshold, vacancy deadline or substantive power of one office to the other.

|

v

ANSWER-GRABBING FORMULATION: Master comparison and trap firewall convert similar-looking presidential and vice-presidential rules into exam-safe distinctions.

POLITY HOSTILE SEMANTIC-REVIEW CORE CONTROL

- **Must remember:** Map Articles 52-73 office by office: electoral colleges, vote values, qualifications, oath, term, vacancy, impeachment/removal, Article 71 disputes, aid and advice, veto, ordinance and clemency require separate procedural chains.
- **Close distinction:** The President is indirectly elected by elected MPs and elected MLAs of States plus Delhi and Puducherry; the Vice-President is elected by all members of both Houses. Presidential impeachment under Article 61 and Vice-Presidential removal under Article 67(b) are not interchangeable.
- **Legal/source limit:** Current office control is Droupadi Murmu as President and C. P. Radhakrishnan as Vice-President, elected 9 September and assuming office 12 September 2025. Articles 72 and 123 remain advice-bound and judicially reviewable within settled constitutional limits.

Semantic-completeness ownership and PYQ control

- **Office map:** Articles 52-62 govern the President's office/election/term and Article 61 impeachment; Articles 63-71 govern the Vice-President, with Article 71 giving the Supreme Court final jurisdiction over both elections. Articles 72-73 then address clemency and Union executive extent.
- **Electoral colleges:** Article 54 includes elected MPs and elected MLAs of the States plus Delhi and Puducherry; nominated members and Legislative-Council members do not vote. Article 66 includes elected and nominated members of both Houses but no State legislators.
- **Vote and vacancy:** Article 55 vote values and PR-STV/secret ballot apply to the President; the Vice-President uses PR-STV/secret ballot without MLA vote values. Articles 62 and 68 impose different vacancy schedules.
- **Removal:** Article 61 impeachment for constitutional violation may begin in either House after fourteen days' notice signed by at least one-fourth and needs two-thirds of total membership in each House. Article 67(b) Vice-Presidential removal begins only in Rajya Sabha, uses an effective-majority resolution agreed to by Lok Sabha, and also requires fourteen days' notice.
- **Aid and advice:** Article 74 advice binds after one reconsideration. Situational discretion in appointing a Prime Minister, seeking proof of confidence or exploring alternatives is bounded by responsible-government conventions and cannot become personal presidential rule.
- **Veto and reserved Bills:** Article 111 assent/withholding/return applies to Parliamentary Bills, with no return of a Money Bill. Article 201 is a separate reserved-State-Bill route governed by the 20 November 2025 Article 143 opinion; it has no judicially fixed deadline or deemed assent.
- **Ordinance:** Article 123 requires both Houses not to be in session, has the

force of an Act, must stay within legislative/rights limits, and ceases six weeks after reassembly unless earlier withdrawn/disapproved. D.C. Wadhwa (1986) and Krishna Kumar Singh (2017) reject routine re-promulgation.

- **Clemency:** Article 72 covers Union-law offences, court-martial and death sentences; Article 161 tracks State executive competence and cannot pardon a court-martial or death sentence. Maru Ram (1980), Kehar Singh (1988) and Epuru Sudhakar preserve ministerial advice and limited review for mala fides, arbitrariness or irrelevant considerations.
- **Current offices:** Droupadi Murmu remains President. C. P. Radhakrishnan was elected Vice-President on 9 September 2025 and assumed office on 12 September 2025 after the casual vacancy; Article 68 requires filling it as soon as possible, not within an invented six-month deadline.
- **Four-ledger/PYQ control:** exact Articles, electoral law, vote arithmetic, conventions, cases, current officeholders and all routed 2018-2025 demands were reconciled; detailed PM/CoM, Parliament and Governor doctrine remains cross-owned.

SOLVED PRACTICE AND PYQS

SOLVED PRACTICE AND PYQS

BASIC MCQS / REMEDIATION PRACTICE

32 original MCQs

Answer rotation: ABCD repeated eight times. Each question includes four option-specific explanations and one question-specific Examiner trap.

MCQ 1. Electoral college

Who participates in electing the President?

A. Elected MPs plus elected State, Delhi and Puducherry MLAs B. Elected MPs and all State legislators C. All MPs and all MLAs D. Only elected MPs

Answer: A.

Option explanations:

- **A:** Correct: Article 54 uses elected MPs and elected MLAs of States, Delhi and Puducherry.
- **B:** Incorrect: Legislative Councillors and nominated State legislators are excluded.
- **C:** Incorrect: nominated MPs and nominated MLAs do not enter this college.
- **D:** Incorrect: the federal component requires specified elected MLAs.

Examiner trap 1: The closest distractor fails because legislative Councillors and nominated State legislators are excluded.

MCQ 2. Vice-Presidential college

Which group elects the Vice-President?

A. Elected MPs only B. All members of both Houses of Parliament C. Elected MPs plus MLAs D. Rajya Sabha alone

Answer: B.

Option explanations:

- **A:** Incorrect: Article 66 also includes nominated MPs.
- **B:** Correct: every elected and nominated member of both Houses participates.
- **C:** Incorrect: no State or Union Territory legislator votes.
- **D:** Incorrect: Lok Sabha members participate equally with Rajya Sabha members.

Examiner trap 2: The closest distractor fails because no State or Union Territory legislator votes.

MCQ 3. MLA vote value

The value of a presidential elector-MLA's vote principally depends on:

A. Current population only B. Area and population C. 1971 population relative to elected Assembly seats D. Assembly strength only

Answer: C.

Option explanations:

- **A:** Incorrect: the constitutional freeze still uses the 1971 census basis.
- **B:** Incorrect: geographical area is not part of Article 55's formula.
- **C:** Correct: population is divided by elected Assembly strength and then by 1,000, with the prescribed rounding rule.
- **D:** Incorrect: seats matter only as the denominator alongside the frozen population.

Examiner trap 3: The closest distractor fails because seats matter only as the denominator alongside the frozen population.

MCQ 4. MP vote value

Which statement about an elected MP's presidential vote value is correct?

A. Lok Sabha MPs have higher value B. Value varies by the MP's State C. Rajya Sabha MPs have higher value D. Every elected MP has the same value

Answer: D.

Option explanations:

- **A:** Incorrect: Article 55 does not privilege Lok Sabha electors.
- **B:** Incorrect: State-specific weighting applies to MLAs, not MPs.
- **C:** Incorrect: Rajya Sabha membership creates no higher value.
- **D:** Correct: aggregate MLA vote value is divided among all elected MPs of both Houses.

Examiner trap 4: The closest distractor fails because article 55 does not privilege Lok Sabha electors.

MCQ 5. President qualification

A presidential candidate must be qualified for election to:

A. Lok Sabha B. Either House C. A State Assembly only D. Rajya Sabha

Answer: A.

Option explanations:

- **A:** Correct: Article 58 uses Lok Sabha qualification.
- **B:** Incorrect: the Constitution specifies Lok Sabha, not either House.
- **C:** Incorrect: State Assembly qualification is not the constitutional test.
- **D:** Incorrect: Rajya Sabha qualification applies to the Vice-President.

Examiner trap 5: The closest distractor fails because the Constitution specifies Lok Sabha, not either House.

MCQ 6. President oath

The President's oath is ordinarily administered by the:

A. Prime Minister B. Chief Justice of India C. Vice-President D. Lok Sabha Speaker

Answer: B.

Option explanations:

- **A:** Incorrect: the Prime Minister does not administer the Article 60 oath.
- **B:** Correct: the Chief Justice of India administers it; the senior-most available Supreme Court judge substitutes.
- **C:** Incorrect: the Vice-President receives a resignation but does not ordinarily administer the oath.
- **D:** Incorrect: the Speaker has no Article 60 role.

Examiner trap 6: The closest distractor fails because the Vice-President receives a resignation but does not ordinarily administer the oath.

MCQ 7. Re-election

The Constitution permits a President to be re-elected:

A. Never B. Once only C. Any number of times D. Twice only

Answer: C.

Option explanations:

- **A:** Incorrect: Article 57 expressly permits re-election.
- **B:** Incorrect: no one-re-election ceiling exists.
- **C:** Correct: the Constitution sets no numerical term limit.
- **D:** Incorrect: India's Constitution does not copy the United States two-term cap.

Examiner trap 7: The closest distractor fails because India's Constitution does not copy the United States two-term cap.

MCQ 8. Casual presidential vacancy

A presidential election after a casual vacancy must be held within:

A. Three months B. One year C. One month D. Six months

Answer: D.

Option explanations:

- **A:** Incorrect: Article 62 does not prescribe three months.
- **B:** Incorrect: one year would breach the constitutional deadline.
- **C:** Incorrect: one month is not the textual rule.
- **D:** Correct: Article 62 requires election within six months; the winner receives a fresh five-year term.

Examiner trap 8: The closest distractor fails because article 62 does not prescribe three months.

MCQ 9. Impeachment initiator

A charge for presidential impeachment may be initiated by:

A. Either House of Parliament B. Rajya Sabha only C. Lok Sabha only D. The electoral college

Answer: A.

Option explanations:

- **A:** Correct: Article 61 gives either House initiation power.
- **B:** Incorrect: Rajya Sabha has exclusive initiation only for Vice-Presidential removal.
- **C:** Incorrect: Lok Sabha is not the sole initiating House.
- **D:** Incorrect: the presidential electoral college has no removal role.

Examiner trap 9: The closest distractor fails because rajya Sabha has exclusive initiation only for Vice-Presidential removal.

MCQ 10. Impeachment majority

Each decisive impeachment resolution requires:

A. Simple majority B. Two-thirds of total membership C. Special majority plus State ratification D. Majority of all then members

Answer: B.

Option explanations:

- **A:** Incorrect: simple majority is far below Article 61's safeguard.
- **B:** Correct: both decisive stages require at least two-thirds of the total membership of the House.
- **C:** Incorrect: State ratification belongs to specified constitutional amendments, not impeachment.
- **D:** Incorrect: an effective majority is used for Vice-Presidential removal in Rajya Sabha.

Examiner trap 10: The closest distractor fails because state ratification belongs to specified constitutional amendments, not impeachment.

MCQ 11. Nominated MPs

Which statement about nominated MPs is correct?

A. They neither elect nor impeach B. They elect but cannot impeach C. They may impeach but do not elect the President D. They both elect and impeach

Answer: C.

Option explanations:

- **A:** Incorrect: they may participate in impeachment.
- **B:** Incorrect: Article 54 excludes them from presidential election.
- **C:** Correct: impeachment involves members of Parliament, while the electoral college includes only elected MPs.
- **D:** Incorrect: their presidential-election exclusion remains.

Examiner trap 11: The closest distractor fails because their presidential-election exclusion remains.

MCQ 12. Ministerial advice

After the President returns ministerial advice once and the Council reiterates it:

A. The Supreme Court decides B. Parliament votes C. The President may repeatedly return it D. The President must act on it

Answer: D.

Option explanations:

- **A:** Incorrect: Article 74 does not transfer the decision to the Court.
- **B:** Incorrect: reconsidered advice is not put to a parliamentary vote.
- **C:** Incorrect: the Article 74(1) proviso permits only one reconsideration.
- **D:** Correct: the 44th Amendment proviso makes reiterated advice binding.

Examiner trap 12: The closest distractor fails because article 74 does not transfer the decision to the Court.

MCQ 13. Hung Lok Sabha

The sound constitutional test for appointing a Prime Minister in a hung Lok Sabha is:

A. Likely ability to secure House confidence B. Rajya Sabha strength C. Largest party in every circumstance D. Personal ideological closeness

Answer: A.

Option explanations:

- **A:** Correct: the appointment must facilitate a ministry capable of commanding Lok Sabha confidence, tested promptly on the floor.
- **B:** Incorrect: collective responsibility is to Lok Sabha, not Rajya Sabha.
- **C:** Incorrect: largest-party status is relevant evidence, not an inflexible constitutional command.
- **D:** Incorrect: personal preference would convert bounded judgment into partisan discretion.

Examiner trap 13: The closest distractor fails because collective responsibility is to Lok Sabha, not Rajya Sabha.

MCQ 14. Returned ordinary Bill

If Parliament re-passes a returned ordinary Bill:

A. A two-thirds override is needed B. The President must assent C. The President may return it again D. A referendum follows

Answer: B.

Option explanations:

- **A:** Incorrect: Article 111 requires the ordinary majority applicable to the Bill, not a United States-style override.
- **B:** Correct: after re-passage, with or without amendments, assent cannot be withheld.
- **C:** Incorrect: the suspensive veto may be used only once.
- **D:** Incorrect: the Constitution provides no referendum at this stage.

Examiner trap 14: The closest distractor fails because the suspensive veto may be used only once.

MCQ 15. Money Bill

Under Article 111, the President may not:

A. Withhold assent to a Money Bill B. Act on ministerial advice C. Return a Money Bill for reconsideration D. Assent to a Money Bill

Answer: C.

Option explanations:

- **A:** Incorrect: the text does not expressly eliminate withholding, although prior recommendation and advice constrain practice.
- **B:** Incorrect: Article 74 continues to govern.
- **C:** Correct: the return proviso excludes Money Bills.
- **D:** Incorrect: assent is the normal route.

Examiner trap 15: The closest distractor fails because assent is the normal route.

MCQ 16. Constitution Amendment Bill

After valid passage of a Constitution Amendment Bill, presidential assent is:

A. Optional B. Returnable once C. Subject to a fresh vote by States D. Obligatory

Answer: D.

Option explanations:

- **A:** Incorrect: the 24th Amendment removed discretion to withhold assent.
- **B:** Incorrect: Article 111's return mechanism does not apply.
- **C:** Incorrect: State ratification, where required, precedes presentation and is not a presidential option.
- **D:** Correct: Article 368 requires the President to give assent.

Examiner trap 16: The closest distractor fails because the 24th Amendment removed discretion to withhold assent.

MCQ 17. Pocket veto

The textual basis of the so-called pocket veto is:

A. Absence of a fixed Article 111 deadline B. A six-month clause C. Prior Supreme Court permission D. Rajya Sabha approval

Answer: A.

Option explanations:

- **A:** Correct: the expression is conventional; it arises from silence about decision time.
- **B:** Incorrect: Article 111 contains no six-month rule.
- **C:** Incorrect: judicial permission is not a precondition.
- **D:** Incorrect: Rajya Sabha does not separately approve presidential delay.

Examiner trap 17: The closest distractor fails because article 111 contains no six-month rule.

MCQ 18. Ordinance timing

Article 123 is available when:

A. Both Houses must be dissolved B. Both Houses are not simultaneously in session C. Lok Sabha alone must be dissolved D. A National Emergency exists

Answer: B.

Option explanations:

- **A:** Incorrect: dissolution of both Houses is impossible because Rajya Sabha is continuing.
- **B:** Correct: an ordinance may issue whenever both Houses are not in session together and immediate action is necessary.
- **C:** Incorrect: dissolution is unnecessary; adjournment or prorogation may also create the condition.
- **D:** Incorrect: National Emergency is not a prerequisite.

Examiner trap 18: The closest distractor fails because dissolution is unnecessary; adjournment or prorogation may also create the condition.

MCQ 19. Ordinance end

Unless earlier disapproved or withdrawn, an ordinance ceases:

A. Immediately on reassembly B. After one year C. Six weeks after the later reassembly date D. After six months

Answer: C.

Option explanations:

- **A:** Incorrect: the Constitution gives a six-week scrutiny window.
- **B:** Incorrect: an ordinance cannot ordinarily survive for a year without legislation.
- **C:** Correct: if Houses reassemble on different dates, six weeks runs from the later date.
- **D:** Incorrect: six months is the maximum interval between sessions, not the post-reassembly life.

Examiner trap 19: The closest distractor fails because six months is the maximum interval between sessions, not the post-reassembly life.

MCQ 20. Re-promulgation

D. C. Wadhwa (1986) characterised routine re-promulgation as:

A. Pocket veto B. Collective responsibility C. Basic Structure D. Fraud on the Constitution

Answer: D.

Option explanations:

- **A:** Incorrect: pocket veto concerns assent delay.
- **B:** Incorrect: collective responsibility concerns the Council of Ministers.
- **C:** Incorrect: the case did not classify re-promulgation as the Basic Structure.
- **D:** Correct: repeated executive renewal without legislative consideration was condemned as constitutional fraud.

Examiner trap 20: The closest distractor fails because pocket veto concerns assent delay.

MCQ 21. Article 72 field

Which category falls uniquely within presidential, rather than gubernatorial, clemency?

A. Court-martial sentence B. Every State-law offence C. Legislative privilege D. Civil decree

Answer: A.

Option explanations:

- **A:** Correct: Article 72 expressly covers court-martial cases.
- **B:** Incorrect: State-law offences ordinarily fall within Article 161.
- **C:** Incorrect: legislative privilege is not a clemency sentence category.
- **D:** Incorrect: clemency concerns criminal punishment, not ordinary civil decrees.

Examiner trap 21: The closest distractor fails because state-law offences ordinarily fall within Article 161.

MCQ 22. Governor and death sentence

A Governor may:

A. Pardon a death sentence B. Suspend, remit or commute a death sentence but not pardon it C. Do nothing concerning a death sentence D. Review a court-martial sentence

Answer: B.

Option explanations:

- **A:** Incorrect: Article 72 reserves the power to pardon a death sentence to the President.
- **B:** Correct: Article 161 permits lesser forms such as suspension, remission and commutation in the State field.
- **C:** Incorrect: the Governor retains these lesser powers.
- **D:** Incorrect: court-martial clemency is outside Article 161.

Examiner trap 22: The closest distractor fails because the Governor retains these lesser powers.

MCQ 23. Clemency review

Epuru Sudhakar supports judicial review of clemency for:

A. Any disagreement on mercy B. No grounds whatsoever C. Mala fides or non-application of mind D. Mere reappreciation of evidence

Answer: C.

Option explanations:

- **A:** Incorrect: courts do not substitute their view of mercy.
- **B:** Incorrect: constitutional power is not wholly immune.
- **C:** Correct: bad faith, arbitrariness, irrelevant material and non-application of mind are recognised grounds.
- **D:** Incorrect: review is not a regular criminal appeal on evidence.

Examiner trap 23: The closest distractor fails because review is not a regular criminal appeal on evidence.

MCQ 24. Vice-President removal

The resolution to remove the Vice-President must originate in:

A. Either House B. A joint sitting C. Lok Sabha D. Rajya Sabha

Answer: D.

Option explanations:

- **A:** Incorrect: Article 67(b) gives Rajya Sabha exclusive initiation.
- **B:** Incorrect: no joint sitting exists for removal.
- **C:** Incorrect: Lok Sabha only agrees to the Rajya Sabha resolution.
- **D:** Correct: Rajya Sabha initiates with an effective majority after fourteen days' notice.

Examiner trap 24: The closest distractor fails because article 67(b) gives Rajya Sabha exclusive initiation.

MCQ 25. Vice-President vacancy

A casual vacancy in the Vice-Presidency must be filled:

A. As soon as possible B. Only at Parliament's next session C. Within one year D. Within six months

Answer: A.

Option explanations:

- **A:** Correct: Article 68 uses 'as soon as possible' and gives the successor a fresh term.
- **B:** Incorrect: the election is not tied to the next parliamentary session.
- **C:** Incorrect: no one-year deadline exists.
- **D:** Incorrect: the six-month deadline belongs to a presidential casual vacancy.

Examiner trap 25: The closest distractor fails because the election is not tied to the next parliamentary session.

MCQ 26. Chairman's vote

The Rajya Sabha Chairman ordinarily has:

A. A first vote only B. No first vote but a casting vote on equality C. Two votes D. No vote in any circumstance

Answer: B.

Option explanations:

- **A:** Incorrect: as a non-member presiding officer, the Chairman lacks an initial vote.
- **B:** Correct: Article 100 gives a casting vote when votes are equally divided.
- **C:** Incorrect: the office never has both an initial and casting vote.
- **D:** Incorrect: a casting vote normally exists, except during the Chair's own removal consideration.

Examiner trap 26: The closest distractor fails because the office never has both an initial and casting vote.

MCQ 27. Acting President

While the Vice-President acts as President:

A. The Lok Sabha Speaker chairs Rajya Sabha B. The Vice-President continues chairing Rajya Sabha C. The Deputy Chairman performs the Chairman's duties D. Rajya Sabha is suspended

Answer: C.

Option explanations:

- **A:** Incorrect: the Lok Sabha Speaker has no Rajya Sabha presiding role.
- **B:** Incorrect: Article 64 prevents simultaneous discharge of both functions.
- **C:** Correct: the Deputy Chairman performs the Chair's duties during the acting period.
- **D:** Incorrect: the continuing chamber remains operational.

Examiner trap 27: The closest distractor fails because the continuing chamber remains operational.

MCQ 28. Article 143

A Supreme Court opinion under Article 143 is:

A. A constitutional amendment B. Always a binding adjudicated decree C. An ordinance D. Advisory rather than binding like an inter partes decree

Answer: D.

Option explanations:

- **A:** Incorrect: advice does not alter constitutional text.
- **B:** Incorrect: its authoritative weight is distinct from a binding judgment between litigating parties.
- **C:** Incorrect: ordinance power is Article 123.
- **D:** Correct: the President may seek advisory opinion on qualifying questions of law or fact.

Examiner trap 28: The closest distractor fails because advice does not alter constitutional text.

MCQ 29. College comparison

Which President-Vice-President electoral-college pairing is correct?

- A. President: elected MPs plus specified elected MLAs; Vice-President: all MPs
B. Both offices: all MPs plus all MLAs
C. Both offices: elected MPs only
D. President: all MPs; Vice-President: elected MPs plus MLAs

Answer: A.

Option explanations:

- **A:** Correct: Article 54 is elected-and-federal; Article 66 is Parliament-only and includes nominees.
- **B:** Incorrect: no MLA votes for Vice-President and nominees do not vote for President.
- **C:** Incorrect: the President's college includes specified elected MLAs.
- **D:** Incorrect: the two colleges have been reversed.

Examiner trap 29: The closest distractor fails because no MLA votes for Vice-President and nominees do not vote for President.

MCQ 30. Removal arithmetic

Vice-Presidential removal in Rajya Sabha requires:

- A. Two-thirds present and voting
B. A majority of all the then members
C. Two-thirds of total membership
D. A simple majority of those present and voting

Answer: B.

Option explanations:

- **A:** Incorrect: that fraction is not Article 67(b)'s formula.
- **B:** Correct: 'all the then members' means an effective majority of the current membership.
- **C:** Incorrect: this is the presidential impeachment threshold.
- **D:** Incorrect: vacancies cannot be ignored as under an ordinary simple majority.

Examiner trap 30: The closest distractor fails because this is the presidential impeachment threshold.

MCQ 31. Vacancy deadline comparison

The express six-month deadline for filling a casual vacancy applies to:

- A. Both offices
B. Vice-President only
C. President only
D. Neither office

Answer: C.

Option explanations:

- **A:** Incorrect: Article 68 uses no six-month outer limit.
- **B:** Incorrect: the Vice-President must be elected as soon as possible.
- **C:** Correct: Article 62(2) fixes six months for the President.
- **D:** Incorrect: the President has an express deadline.

Examiner trap 31: The closest distractor fails because the President has an express deadline.

MCQ 32. Article 111 finality

Which Bill can neither be returned by the President nor subjected to a withholding veto after valid passage?

A. Ordinary Bill B. Governor-reserved State Bill C. Money Bill D. Constitution Amendment Bill

Answer: D.

Option explanations:

- **A:** Incorrect: an ordinary Bill may be returned once and assent may initially be withheld.
- **B:** Incorrect: Article 201 permits withholding and return of a non-Money State Bill through the Governor.
- **C:** Incorrect: a Money Bill cannot be returned, but the text still presents assent or withholding.
- **D:** Correct: Article 368, after the 24th Amendment, makes assent obligatory.

Examiner trap 32: The closest distractor fails because an ordinary Bill may be returned once and assent may initially be withheld.

PYQS AND ANSWER PRACTICE

Verified PYQ routes

Objective PYQ key discipline

For objective questions, a correct-option letter is printed only where a final official or locally held official UPSC key has been verified. Otherwise the answer is withheld rather than inferred.

PYQ 1 - 2018 Prelims GS-I Q32

Question: With reference to the election of the President of India, consider the following statements:

1. The value of the vote of each MLA varies from State to State.
2. The value of the vote of MPs of the Lok Sabha is more than the value of the vote of MPs of the Rajya Sabha.

Which of the statements given above is/are correct?

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Answer withheld pending official UPSC key.

PYQ 2 - 2022 GS-II Q4

Question: Discuss the role of the Vice-President of India as the Chairman of the Rajya Sabha. (150 words, 10 marks)

Model answer: Article 64 makes the Vice-President ex-officio Chairman of Rajya Sabha; this presiding role, rather than the rare acting-presidential contingency, is the office's regular work. The Chairman maintains order, interprets rules, decides points of order and admissibility, and regulates proceedings under House rules. Though not a Rajya Sabha member, Article 100 grants a casting vote when votes are equally divided. Under the Tenth Schedule, the Chairman decides disqualification questions concerning Rajya Sabha members, subject to judicial review after *Kihoto Hollohan*. Unlike the Lok Sabha Speaker, the Chairman does not certify Money Bills. Article 92 also bars the Vice-President from presiding or voting while a removal resolution is considered, though participation in debate is allowed. Since Rajya Sabha represents States and revises legislation, neutral, reasoned rule enforcement is the foundation of the Chair's legitimacy.

PYQ 3 - 2022 GS-II Q14

Question: Critically examine the procedures through which the Presidents of India and France are elected. (250 words, 15 marks)

Model answer: The procedures reflect different executive designs. India's President is a nominal federal Head of State, whereas France's President is a powerful actor in a semi-presidential system. India uses an indirect college of elected MPs and elected State, Delhi and Puducherry MLAs. MLA votes are weighted using the frozen population-to-seat ratio; aggregate State and parliamentary vote values are balanced. PR-STV and a secret ranked ballot produce a majority-supported winner. The method embeds federal representation and avoids a direct rival mandate to the Cabinet, but is complex and democratically remote. France uses direct universal suffrage. An absolute majority wins in the first round; otherwise the top two contest a run-off. This provides a visible nationwide mandate suitable for an active President, but competing presidential and legislative mandates can produce cohabitation. Thus, India privileges federal mediation and parliamentary responsibility; France privileges direct authorization and executive leadership. Procedure must be judged against the office being filled.

PYQ 4 - 2023 Prelims GS-I Q36

Question: Consider the following statements:

1. If the election of the President is declared void by the Supreme Court, all acts done before the decision become invalid.
2. Presidential election can be postponed because some Legislative Assemblies are dissolved and elections are pending.
3. The Constitution prescribes a time limit for presidential assent to a Bill.

How many statements are correct?

A. Only one B. Only two C. All three D. None

Answer withheld pending official UPSC key.

PYQ 5 - 2023 Prelims GS-I Q80

Question: Consider the following statements in respect of election to the President of India:

1. Nominated members of Parliament or State Assemblies are included.
2. Higher the number of elective Assembly seats, higher is each MLA's vote value.
3. Each Madhya Pradesh MLA has a higher value than each Kerala MLA.
4. Puducherry MLA value is higher than Arunachal Pradesh because its population-to-elective-seat ratio is higher.

How many statements are correct?

A. Only one B. Only two C. Only three D. All four

Answer withheld pending official UPSC key.

PYQ 6 - 2025 Prelims GS-I Q51

Question: With reference to Indian polity, consider the following statements:

1. An Ordinance can amend any Central Act.
2. An Ordinance can abridge a Fundamental Right.
3. An Ordinance can come into effect from a back date.

Which are correct?

A. 1 and 2 only B. 2 and 3 only C. 1 and 3 only D. 1, 2 and 3

Official Set-A answer: C.

Explanation: An ordinance has Act-like force and may amend Central law or operate retrospectively within constitutional limits. It is "law" under Article 13 and cannot abridge Fundamental Rights.

PYQ 7 - 2025 Prelims GS-I Q86

Question: Consider the following statements regarding the pardoning power of the President:

1. Its exercise can be subjected to limited judicial review.
2. The President can exercise it without advice of the Central Government.

Which is/are correct?

A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Official Set-A answer: A.

Explanation: *Epuru Sudhakar* permits limited review for defects such as mala fides and non-application of mind. *Maru Ram* confirms that Article 72 is exercised on binding ministerial advice.

PYQ 8 - 2025 GS-II Q3

Question: Compare and contrast the President's power to pardon in India and in the USA. Are there any limits to it in both countries? What are "preemptive pardons"? (150 words, 10 marks)

Model answer: Article 72 gives India's President pardon, reprieve, respite, remission and commutation for Union-field offences, court-martial cases and every death sentence. The power is exercised on binding Council of Ministers advice (*Maru Ram*), may examine merits afresh (*Kehar Singh*) and is reviewable on narrow grounds such as mala fides or non-application of mind (*Epuru Sudhakar*). The United States President's Article II power is personally exercised and covers federal offences, but not State offences or impeachment. A preemptive pardon covers completed conduct before charge, trial or conviction; it cannot authorize future crime. Both powers are broad safety valves, but India's is advice-bound and judicially reviewable, while the US model concentrates political responsibility in the elected President.

SIX ORIGINAL MAINS QUESTIONS WITH MODEL ANSWERS

Original Q1 - 10 marks, 150 words

Question: "The Indian President is a constitutional sentinel, not an alternative executive." Examine.

Model answer: Articles 53 and 74 create a deliberate duality: Union executive power is formally vested in the President, but exercised on binding ministerial advice. The 42nd Amendment altered Article 74(1) to make the binding character explicit; the 44th inserted a proviso permitting one reconsideration, after which reiterated advice controls. Therefore, a President cannot pursue an independent policy in ordinary majority government. Yet the office is not empty. Article 78 supports consultation and information; reconsideration can force reflection; and a hung Lok Sabha requires bounded judgment in appointing the person most likely to secure House confidence. K. R. Narayanan's return of President's-Rule advice illustrates warning without final defiance. The President is therefore a sentinel who protects constitutional process through questions, reasons and limited delay, but not an alternative executive because democratic responsibility remains with the Council of Ministers.

Original Q2 - 10 marks, 150 words

Question: Compare the constitutional vacancy arrangements for the President and Vice-President.

Model answer: The Constitution prevents vacancy from becoming an institutional vacuum, but uses different rules for the two offices. Under Articles 62 and 65, a presidential casual vacancy must be filled within six months; meanwhile the Vice-President acts as President. If both offices are unavailable, Article 70 read with the President (Discharge of Functions) Act, 1969 enables the Chief Justice of India, or the senior-most available Supreme Court judge, to discharge functions. The elected President receives a fresh five-year term. Under Article 68, a Vice-Presidential casual vacancy is filled "as soon as possible"; there is no six-month textual deadline, and the successor also receives a fresh term. During the vacancy there is no acting Vice-President because the office's regular Rajya Sabha duties can be performed by the Deputy Chairman. The difference reflects function: uninterrupted Head-of-State continuity needs a substitute, while parliamentary presiding continuity already has an internal chamber mechanism.

Original Q3 - 15 marks, 250 words

Question: Explain how the presidential election reconciles democratic representation with federal balance.

Model answer: Articles 54-55 reject both hereditary headship and direct presidential rivalry. The President is indirectly elected by elected MPs and elected MLAs of States, Delhi and Puducherry. Because every elector is elected, the system retains democratic legitimacy; excluding nominated members and MLCs keeps the mandate tied to direct election. Federal balance enters through weighted MLA votes based on the frozen 1971 population-to-elected-seat ratio. This gives States different aggregate weight while seeking relative uniformity within each State. The total value of MLA votes is then divided among elected MPs of both Houses, producing parity between the States collectively and Parliament collectively. PR-STV and a secret ranked ballot require a candidate to cross a majority quota through preference transfers rather than win by a fragmented plurality. The design is complex and the 1971 basis no longer mirrors current population distribution. Yet immediate adoption of current population could penalise States that achieved population stabilisation, while direct election could create a competing popular mandate against the parliamentary Cabinet. The system is therefore a constitutional compromise: democratically derived, federally weighted and nationally mediated.

Original Q4 - 15 marks, 250 words

Question: Ordinance power is necessary for urgency but dangerous as a substitute for Parliament. Discuss.

Model answer: Article 123 permits an ordinance when both Houses are not simultaneously in session and circumstances require immediate action. It has the force of an Act, may amend Central law and may operate retrospectively within constitutional limits. This is useful where waiting for Parliament would leave a serious legal gap. However, ordinance-making bypasses debate, committee scrutiny and the possibility that one House may reject the executive's proposal. The safeguards therefore matter more than the existence of the power. Every ordinance must be laid before both Houses and ordinarily ceases six weeks after their later reassembly. It remains limited by Parliament's legislative competence, Fundamental Rights and judicial review. *R. C. Cooper* rejected complete immunity of satisfaction; *D. C. Wadhwa* called routine re-promulgation a fraud on the Constitution; and *Krishna Kumar Singh* held that laying is mandatory and repeated re-promulgation subverts legislative supremacy. The correct reform is not abolition, because genuine urgency exists, but prompt parliamentary scrutiny, reasoned necessity and strict resistance to re-promulgation. Article 123 is legitimate as a temporary bridge, unconstitutional in spirit when converted into an alternative legislative channel.

Original Q5 - 20 marks, 250 words

Question: Analyse the President's legislative powers, with special reference to veto and ordinance-making, and assess the accountability safeguards.

Model answer: The President is a constituent part of Parliament under Article 79 and completes important legislative stages without becoming a third deliberative chamber. Articles 85-87 cover summoning, prorogation, dissolution, messages and addresses; Article 108 enables joint sitting; Article 111 controls assent. For an ordinary Bill the President may assent, withhold or return it once, but re-passage compels assent. A Money Bill cannot be returned. A Constitution Amendment Bill must receive assent under Article 368 after the 24th Amendment. Article 201 differs: a reserved non-Money State Bill may be returned through the Governor, but State re-passage does not textually compel assent. Article 111's silence on time creates the pocket-veto possibility, although responsible advice and constitutional expedition constrain its legitimate use. Article 123 supplies temporary Act-like law when both Houses are not simultaneously sitting and urgent action is required. Its safeguards are legislative competence, Fundamental Rights, mandatory laying, six-week expiry, disapproval and judicial review. *D. C. Wadhwa* and *Krishna Kumar Singh* prevent re-promulgation from replacing Parliament. Across both veto and ordinance powers, the central accountability rule is that formal presidential action is advice-bound, legislatively answerable and judicially reviewable for constitutional abuse.

Original Q6 - 20 marks, 250 words

Question: Evaluate the Vice-President's dual position as Rajya Sabha Chairman and potential acting President.

Model answer: The Vice-President's title suggests executive succession, but the office's regular constitutional purpose is parliamentary. Article 64 makes the Vice-President ex-officio Chairman of Rajya Sabha and not a member of that House. Article 100 therefore denies an initial vote but permits a casting vote on equality. The Chairman regulates proceedings, decides points of order and admissibility, and determines Rajya Sabha anti-defection questions under the Tenth Schedule, subject to judicial review after *Kihoto Hollohan*. Article 92 creates a crucial neutrality safeguard: during consideration of the Vice-President's own removal resolution, the office-holder may speak but cannot preside or vote. The Chairman also differs from the Lok Sabha Speaker by lacking Money-Bill certification authority. The contingency role arises under Article 65 when the presidency is vacant or the President is temporarily unable. During that period the Vice-President does not simultaneously chair Rajya Sabha; the Deputy Chairman performs those duties, and presidential emoluments apply. Acting does not mean succeeding to the unexpired term. The dual design secures both federal-chamber procedure and Head-of-State continuity, but legitimacy depends on visible impartiality in the Chair and strict temporary limits in the acting role.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

PART II - Optional Advanced enrichment

Skipping this Part does not reduce answer completeness. Use it for deeper evaluation, comparison and interview-level refinement.

A1. Why the President is neither ruler nor rubber stamp

- [ANALYSIS] "Rubber stamp" is too strong because constitutional form can delay, warn and force reconsideration; "independent executive" is equally wrong because reiterated advice binds.
- [ANALYSIS] Bagehot's rights - to be consulted, to encourage and to warn - illuminate the office, but Indian answers must anchor them in Articles 74 and 78 rather than importing convention as text.
- [ANALYSIS] The office has maximum leverage where democratic authorization is least clear: hung Houses, contested confidence, caretaker situations and questionable dissolution advice.
- [LIMIT] Leverage is not policy autonomy. The President cannot substitute a preferred programme for the elected ministry's.

A2. Election method follows office design: India and France

Dimension	India	France
System	Parliamentary republic	Semi-presidential Fifth Republic
President's normal role	Nominal Head of State	Politically powerful executive actor
Electorate	Indirect federal electoral college	Direct universal adult suffrage
Voting	Weighted PR-STV, secret ballot	Two-round majority election
Majority method	Transfer lower preferences until quota	Absolute majority first round; top two contest second if needed
Mandate	Federal-symbolic and mediated	Direct nationwide personal mandate
Risk	Indirectness can appear remote	Dual legitimacy/cohabitation can divide executive authority

- [ANALYSIS] India's mechanism prevents a rival popular executive mandate and represents federal units.
- [ANALYSIS] France's mechanism legitimises a strong President but may generate tension with a parliamentary majority of another political camp.
- [VERDICT] The procedures are not competing election technologies in isolation; each matches a different constitutional job description.

A3. India and USA: pardon power

Dimension	India	United States
Text	Article 72	Article II, Section 2
Office type	Nominal executive	Real presidential executive
Advice	Binding Council of Ministers	Personal presidential power
Jurisdiction	Union field, court-martial, death sentence	Federal offences against United States
Express limits	Constitutional field; advice and review	Cannot pardon impeachment; no State offences
Judicial control	Limited review of decision-making defects	Very broad power; constitutional limits remain
Pre-emptive pardon	Do not mechanically import US doctrine	Completed conduct may be pardoned before charge/conviction; not future conduct

- [ANALYSIS] Both systems treat clemency as a safety valve, but accountability differs: parliamentary ministerial responsibility in India versus direct presidential political responsibility in the USA.
- [LIMIT] "Pre-emptive" does not mean authorization of a future crime.

A4. Ordinances and democratic legitimacy

- [ANALYSIS] Necessity argument: crises and immediate legal gaps may arise between sittings.
- [ANALYSIS] Abuse argument: the executive can bypass debate, committee scrutiny and an unfavourable second chamber.
- [ANALYSIS] Constitutional settlement: temporary force, mandatory laying, legislative disapproval, judicial review and anti-re-promulgation.
- [LIMIT] Courts police constitutional abuse but cannot replace Parliament's political duty to scrutinise ordinances promptly.

A5. Veto, assent delay and constitutional time

- [ANALYSIS] A pocket veto is a consequence of textual silence, not a separately enumerated power.
- [ANALYSIS] Delay can preserve deliberative space but can also become an unaccountable veto through inertia.
- [CURRENT] The 2025 Article 143 opinion rejected rigid court-made clocks and deemed assent while retaining limited review of glaring unexplained delay.
- [VERDICT] The sound reform direction is transparent reasons and constitutional expedition, not judicial rewriting of an absent deadline.

A6. Clemency as mercy, public power and rule of law

- [ANALYSIS] Clemency corrects exceptional harshness, accounts for post-conviction developments and permits public-policy mercy.
- [ANALYSIS] Because it alters a judicially imposed consequence, reasons/material must not be caste-, religion-, status- or politics-driven.
- [ANALYSIS] Limited review respects separation of powers: courts inspect the integrity of the process rather than retrying clemency merits.

A7. Chairmanship, federal deliberation and neutrality

- [ANALYSIS] The Vice-President is elected nationally by Parliament but presides over the chamber designed to represent States; this creates a permanent neutrality test.
- [ANALYSIS] Agenda rulings, speaking opportunities, disciplinary action and anti-defection timing can affect substantive political outcomes.
- [ANALYSIS] Legal review catches some defects; daily legitimacy still depends on consistent procedure and reasoned rulings.
- [VERDICT] The Chair's strongest authority is reputational: opposition compliance rises when procedure appears even-handed.

A8. Reform matrix

Issue	Reform-compatible response	Constitutional caution
Hung-House discretion	Published order of preference and immediate floor test	Do not freeze all political contingencies
Assent delay	Reasons, tracking and constitutional expedition	No invented deemed assent after 2025 opinion
Ordinance overuse	Prompt committee/parliamentary scrutiny	Urgency power remains constitutionally valid
Mercy delay	Time-bound administration and full records	Final decision remains executive on advice
Chair neutrality	Reasoned rulings and predictable rule enforcement	House autonomy and judicial limits remain

Issue	Reform-compatible response	Constitutional caution
VP vacancy	Prompt notified election	Article 68 has no six-month text

A9. Mains answer architecture

President as rubber stamp

1. Define nominal executive through Articles 53/74.
2. State 42nd binding-advice and 44th reconsideration rules.
3. Separate normal rule from hung-House situational discretion.
4. Use K. R. Narayanan as a reconsideration example.
5. Bound discretion by Lok Sabha confidence and judicially reviewable constitutionalism.
6. Conclude: dormant in normal politics, consequential at constitutional margins.

Ordinance answer

1. Article 123 purpose.
2. Preconditions and legislative competence.
3. Six-week/laying/disapproval controls.
4. *Wadhwa and Krishna Kumar Singh (2017)*.
5. Necessity versus bypass criticism.
6. Conclude with legislative scrutiny, not abolition.

Vice-President as Chairman

1. Article 64 thesis: regular role is presiding.
2. Rule/order/casting-vote powers.
3. Tenth Schedule tribunal and review.
4. Speaker distinctions.
5. Neutrality/federal-chamber challenge.
6. Conclude that impartiality converts authority into legitimacy.

CONSOLIDATED REGISTER NOTES

Final consolidated register notes

Constitutional identity

- President: Articles 52-62, 72, 74; nominal Head of State.
- Vice-President: Articles 63-71; ex-officio Rajya Sabha Chairman.
- President acts on binding ministerial advice; may return advice once.
- VP is not an automatic successor for the unexpired presidential term.

President election

- College: elected LS + elected RS + elected State/Delhi/Puducherry MLAs.
- Excluded: nominated MPs/MLAs, all MLCs, J&K UT MLAs.
- MLA value: 1971 population divided by elected MLAs and 1000; rounding rule.
- MP value: total MLA vote value divided by elected MPs of both Houses.
- Same MP value across Houses.
- PR-STV, secret ranked ballot, majority quota and preference transfer.
- 50 proposers + 50 seconders; statutory deposit.
- Supreme Court finally decides disputes.
- Electoral-college vacancy does not invalidate election.

- Acts before election is voided remain valid.

President qualification and tenure

- Citizen; 35; qualified for Lok Sabha; no office of profit.
- Oath: CJI/senior-most available SC judge.
- Five years; continues until successor; unlimited re-election.
- Resigns to VP.
- Casual vacancy election within six months; successor gets fresh five years.
- Dr Rajendra Prasad alone completed two terms.

Impeachment and immunity

- Ground: violation of Constitution.
- Either House starts; one-fourth signs; 14-day notice.
- Two-thirds of total membership in both Houses.
- Nominated MPs participate; MLAs do not.
- President may appear/be represented in investigation.
- No President impeached.
- Article 361: official non-answerability; no criminal case/arrest during term; two-month notice for personal civil claim.

Position and discretion

- Article 53 form; Articles 74-75 parliamentary reality.
- 42nd: advice binding; 44th: return once, reiterated advice binding.
- Situational spaces: hung-House PM, floor-confidence demand, ministry refusing to resign, dissolution where alternative exists.
- No general personal policy discretion.
- Narayanan 1997/1998: President's-Rule advice returned.

Powers

- Executive: appointments, Article 77 form, Article 78 information.
- Legislative: summon/prorogue, dissolve LS, addresses/messages, joint sitting, 12 RS nominations, assent/ordinance.
- Financial: recommendations, Budget, grants, Finance Commission, Contingency Fund.
- Judicial: judges, Article 143 advice, Article 72.
- Diplomatic/military: formal international authority, Supreme Commander.
- Emergency: Articles 352, 356, 360 under separate safeguards.

Veto

- Ordinary: assent/withhold/return once; re-passage binds.
- Money: assent/withhold; cannot return.
- Amendment: assent obligatory.
- Pocket: no fixed Article 111 deadline.
- Article 201 State bill: State repassage does not override President.
- 2025 opinion: no rigid judicial timeline/deemed assent; glaring unexplained delay remains reviewable for direction to decide.

Ordinance

- Available unless both Houses are in session.
- Immediate action; same force as Act; within Parliament competence.
- Can amend Central Act and be retrospective.
- Cannot abridge FRs or amend Constitution.

- Lay before both Houses; ends six weeks after later reassembly or earlier disapproval/withdrawal.
- *Cooper*: review; *Wadhwa*: re-promulgation fraud; *Krishna Kumar Singh (2017)*: mandatory laying and no automatic enduring rights.

Pardon

- Pardon, reprieve, respite, remission, commutation.
- President: court-martial, Union-field offences, every death sentence.
- Governor: State field; cannot pardon death or touch court-martial; may suspend/remit/commute death.
- *Maru Ram (1980)*: advice.
- *Kehar Singh (1988)* judgment: merits can be reconsidered.
- *Epuru Sudhakar*: limited review.
- US pre-emptive pardon: completed conduct before charge/conviction, never future crime.

Vice-President

- College: all elected + nominated MPs; no MLAs.
- PR-STV, secret ballot, equal votes.
- Citizen; 35; qualified for Rajya Sabha.
- 20 proposers + 20 seconders.
- Oath by President/person appointed.
- Five years; resigns to President.
- Removal: RS effective majority, LS agreement, 14 days, no ground, not impeachment.
- Casual vacancy: election as soon as possible, no six-month text, fresh five-year term.
- C. P. Radhakrishnan: elected 9 Sep 2025, entered office 12 Sep 2025.

Chairman and acting role

- Not RS member; no first vote; casting vote on tie.
- Maintains order, rules on procedure, Tenth Schedule tribunal subject to review.
- Does not certify Money Bills.
- During own removal: cannot preside; may speak; cannot vote.
- Acting as President: does not chair RS; Deputy Chairman performs duties.

Final 15 traps

1. Nominated MPs: VP election yes; President election no; impeachment yes.
2. MLAs: President election yes; VP election/impeachment no.
3. MLCs: neither election.
4. Delhi/Puducherry MLAs included for President; J&K UT MLAs not included.
5. President qualifies for LS; VP for RS.
6. President oath by CJI; VP oath by President.
7. President casual vacancy within six months; VP as soon as possible.
8. VP successor gets fresh term; does not finish predecessor's term.
9. Ordinary Bill returnable; Money Bill not; amendment assent mandatory.
10. Article 111 has no fixed deadline.
11. Ordinance possible if even one House is not in session.
12. Ordinance cannot amend Constitution/abridge FR.
13. Governor cannot pardon death but may commute it.
14. VP removal is not impeachment.
15. Acting VP cannot simultaneously chair Rajya Sabha.

COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

ASCII MASTER FLOW - PANEL 1/12: Two Offices, Parliamentary Design And Current Control

PRESIDENT: Articles 52-62, 72 and 74; constitutional Head of State
VICE-PRESIDENT: Articles 63-71; regular role is Rajya Sabha Chair
Articles 53, 74 and 75 make the President nominal in ordinary government
The Vice-President acts temporarily, never succeeds for an unexpired term
CURRENT CONTROL, CHECKED 5 SEP 2026: Droupadi Murmu is President
CURRENT CONTROL, CHECKED 5 SEP 2026: C. P. Radhakrishnan is Vice-President

MECHANISM

Parliamentary government separates formal constitutional dignity from politically accountable executive power.

ANSWER LINE

The President is a constitutional sentinel without a rival popular mandate; the Vice-President is principally a parliamentary presiding officer.
MUST REMEMBER: Map Articles 52-73 office by office: electoral colleges, vote values, qualifications, oath, term, vacancy, impeachment/removal, Article 71 disputes, aid and advice, veto, ordinance and clemency require separate procedural chains.

ASCII MASTER FLOW - PANEL 2/12: Election Colleges And Statutory Timeline

ARTICLE 54: elected MPs plus elected State, Delhi and Puducherry MLAs
PRESIDENT EXCLUDES: nominated members and all Legislative Council members
ARTICLE 66: both Houses of Parliament, elected and nominated; no MLAs
1952 ACT: notification, nomination, scrutiny, withdrawal, poll and petitions
1974 RULES: forms, ballot and counting machinery
1997 REFORM: President 50+50; VP 20+20; Rs 15,000 deposit

MECHANISM

Constitutional electoral design is administered through the 1952 Act, 1974 Rules and anti-frivolous-candidature reform.

ANSWER LINE

Never transfer one office's electoral college or nomination threshold to the other.

ASCII MASTER FLOW - PANEL 3/12: Vote Value, Pr-Stv, Count And Article 71

MLA VALUE: 1971 population / elected MLAs / 1000 with constitutional rounding
MP VALUE: total MLA vote value / elected MPs of both Houses
The same elected-MP vote value applies in Lok Sabha and Rajya Sabha
PR-STV uses ranked secret ballots and transferable preferences
Winning quota is more than half of valid vote value
ARTICLE 71: Supreme Court finally decides both presidential and vice-presidential disputes

MECHANISM

Weighted votes seek Union-State parity, while transferable preferences seek majority support for a single office.

ANSWER LINE

Vacancies in the college do not invalidate the election, and a void election does not erase prior official acts.

ASCII MASTER FLOW - PANEL 4/12: Qualifications, Oath, Term, Vacancy, Removal And Immunity

PRESIDENT: citizen, 35, Lok Sabha qualification, no disqualifying office of profit
VICE-PRESIDENT: citizen, 35, Rajya Sabha qualification, no disqualifying office of profit
President oath: CJI or senior-most available Supreme Court judge; VP oath: President or appointee
Both terms are five years; re-election is not constitutionally capped
President casual vacancy: election within six months; VP vacancy: as soon as possible
ARTICLE 61 impeachment differs from Article 67(b) VP removal; Article 361 is procedural immunity

MECHANISM

Separate eligibility, continuity and removal rules protect each office according to its constitutional function.

ANSWER LINE

Nominated MPs impeach but do not elect the President; State MLAs elect but do not impeach.

ASCII MASTER FLOW - PANEL 5/12: Aid, Advice And Bounded Situational Discretion

ARTICLE 74: Council of Ministers with Prime Minister aids and advises
42ND AMENDMENT (1976): amended Article 74(1), making binding advice explicit
44TH AMENDMENT (1978): inserted Article 74(1) proviso; one reconsideration, then advice binds
SHAMSHER SINGH (1974): constitutional head works through responsible government
Hung House: identify the person most likely to command Lok Sabha confidence
ARTICLE 163 recognises only constitutionally required gubernatorial discretion, not an unlimited domain

MECHANISM

Binding advice governs normal politics; narrow situational judgment protects continuity when a clear accountable majority is absent.

ANSWER LINE

The President may warn, seek information and return advice once, but cannot create a personal executive programme.

ASCII MASTER FLOW - PANEL 6/12: Presidential Power Clusters And Accountability

EXECUTIVE: appointments, Rules of Business and Article 78 information
LEGISLATIVE: sessions, dissolution, addresses, messages, nominations and joint sitting
FINANCIAL: recommendation routes, Budget, Contingency Fund and Finance Commission
JUDICIAL: appointments, Article 143 reference and Article 72 clemency
DIPLOMATIC AND MILITARY: formal authority subject to constitutional government
EMERGENCY: Articles 352, 356 and 360 under separate Part XVIII safeguards

MECHANISM

The office has broad formal powers, but ministerial responsibility, statute and judicial review allocate real decision-making authority.

ANSWER LINE

A complete answer names the exact power, advice route, legal limit and accountability mechanism.

CLOSE DISTINCTION: The President is indirectly elected by elected MPs and elected MLAs of States plus Delhi and Puducherry; the Vice-President is elected by all members of both Houses. Presidential impeachment under Article 61 and Vice-Presidential removal under Article 67(b) are not interchangeable.

ASCII MASTER FLOW - PANEL 7/12: Article 111 Veto And Article 201 Reserved Bills

ORDINARY UNION BILL: assent, withhold or return once; repassage requires assent
MONEY BILL: assent or withhold; cannot be returned
CONSTITUTION AMENDMENT BILL: assent is obligatory after the 24th Amendment
ARTICLE 111 sets no decision deadline, creating the pocket-veto possibility
ARTICLE 201: reserved non-Money State Bill may be returned through the Governor
2025 INSC 1333: no court-made rigid clock or deemed assent; glaring unexplained delay remains reviewable

MECHANISM

Bill type and constitutional route determine whether return, withholding, repassage or review is available.

ANSWER LINE

Do not apply Article 111's mandatory assent after repassage to a State Bill under Article 201.

ASCII MASTER FLOW - PANEL 8/12: Article 123 Ordinance Lifecycle And Case Control

TRIGGER: both Houses not simultaneously in session and immediate action necessary
FORCE: Act-like, within Parliament competence and Fundamental Rights
CAPACITY: may amend Central law and operate retrospectively within constitutional limits
EXIT: laid before both Houses; ceases six weeks after later reassembly unless earlier ended
D.C. WADHWA (1986): routine re-promulgation is fraud on the Constitution
KRISHNA KUMAR SINGH (2017): laying mandatory; satisfaction reviewable; no automatic enduring rights

MECHANISM

An ordinance bridges an urgent legislative gap; mandatory laying prevents it becoming an executive substitute for Parliament.

ANSWER LINE

The constitutional cure for ordinance abuse is scrutiny and anti-re-promulgation, not denial of genuine urgency.

ASCII MASTER FLOW - PANEL 9/12: Article 72 Clemency, Review And Governor Contrast

FIVE FORMS: pardon, reprieve, respite, remission and commutation
PRESIDENT: court-martial, Union-field offences and every death sentence
GOVERNOR: State field; no court-martial pardon and no death-sentence pardon
MARU RAM (1980): clemency follows binding ministerial advice
KEHAR SINGH (1988): executive may examine merits afresh without becoming an appellate court
EPURU SUDHAKAR (2006): limited review for mala fides, arbitrariness and material defects

MECHANISM

Clemency is executive grace structured by jurisdiction, responsible-government advice and rule-of-law review.

ANSWER LINE

Courts review defects in clemency decision-making; they do not substitute their own mercy decision.

ASCII MASTER FLOW - PANEL 10/12: Vice-President: Election, Term, Removal And Vacancy

ARTICLE 66: all elected and nominated MPs; equal votes; PR-STV secret ballot

QUALIFICATION: citizen, 35 and qualified for Rajya Sabha

ARTICLE 67(b): Rajya Sabha effective-majority resolution; Lok Sabha agreement

Removal begins only in Rajya Sabha, needs 14 days notice and states no ground

ARTICLE 68: casual vacancy election as soon as possible, with a fresh five-year term

ARTICLE 71: Supreme Court election-dispute route applies to the Vice-President too

MECHANISM

The Vice-President's narrower parliamentary electorate matches the office's principal Rajya Sabha function.

ANSWER LINE

Vice-presidential removal is not impeachment, and its casual-vacancy rule has no presidential six-month deadline.

ASCII MASTER FLOW - PANEL 11/12: Rajya Sabha Chairman And Acting-President Role

ARTICLE 64: ex-officio Chairman and not a Rajya Sabha member

ARTICLE 100: no first vote; casting vote on equality

ARTICLE 92: during own removal debate, may speak but cannot preside or vote

TENTH SCHEDULE: decides Rajya Sabha defection cases subject to judicial review

ARTICLE 65: acts as President during vacancy or inability

While acting as President, Deputy Chairman performs Rajya Sabha Chair duties

MECHANISM

The Chair's procedural authority becomes legitimate only through consistent, reasoned and visibly impartial exercise.

ANSWER LINE

For the 2022 PYQ, compare the Chairman with the Lok Sabha Speaker and end on federal-chamber neutrality.

ASCII MASTER FLOW - PANEL 12/12: Pyq Firewall, Answer Spines And Qualified Verdict

EIGHT VERIFIED PYQS: 2018, 2022, 2023 and 2025 routes

PRELIMS: colleges, vote values, void election, assent, ordinance and clemency

10 MARKS: provision -> mechanism -> case/example -> limit -> verdict

15 MARKS: design -> procedure -> comparison/critique -> balanced verdict

20 MARKS: constitutional position -> power clusters -> advice/review -> reform

STRICT PRACTICE: exactly 32 original MCQs in ABCD x 8 rotation

MECHANISM

Exam execution moves from the exact Article to mechanism, evidence, qualification and a directive-sensitive conclusion.

ANSWER LINE

The two offices preserve continuity without displacing parliamentary responsibility: dignity and discretion remain constitutionally bounded.

LEGAL/SOURCE LIMIT: Current office control is Droupadi Murmu as President and C. P.

Radhakrishnan as Vice-President, elected 9 September and assuming office 12 September 2025.

Articles 72 and 123 remain advice-bound and judicially reviewable within settled constitutional limits.